

COMPLETE LEARNING SESSION

High Court and Subordinate Courts - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

High Court and Subordinate Courts	
01. ONE INTEGRATED JUDICIARY Single Court for the legal jurisdiction and order is provided.	02. HISTORICAL AND CONSTITUTIONAL LOCATION Article 213 states that there shall be High Courts for each state.
03. COMPOSITION AND SANCTIONING STRENGTH Sanctioned strength varies according to institutional decisions and	04. APPOINTMENT OF HIGH COURT JUDGES Current collegium practice is judicially developed rather than written.
05. QUALIFICATIONS "Exceptional talent" is not a High Court eligibility issue.	06. OATH, TENURE AND RETIREMENT Designation is addressed to the President.
07. REMOVAL AND INDEPENDENCE ASSAULTS Removal is done by the President, Chief Justice or High Court Chief	08. TRANSFER OF JUDGES Consent of a High Court judge under Article 223, the judge's
09. ACTING, ADDITIONAL AND RETIRED JUDGES A retired judge under Article 228, is not formally treated as a	10. COURT OF RECORD AND CONTEMPT Contempt powers administration of justice, not judicial remedy.
11. JURISDICTION MASTER MAP The other "historical" Court, and both powers identified original	12. ARTICLE 226: THE CITIZEN'S WIDE CONSTITUTIONAL REMEDY Article 226: the citizen's wide constitutional remedy and a half a
13. THE FIVE WRITS Habeas corpus writs are not subject to a grant of a writ of	14. ALTERNATIVE REMEDY RULE The standard exceptions include self-defence, rights.
15. JUDICIAL REVIEW AS BASIC STRUCTURE Division of powers underlines under Article 226/228, the	16. ARTICLE 227 SUPERINTENDENCE Habeas Corpus / Check that states and local judicial orders.
17. ARTICLE 226 CONSTITUTIONAL WITHDRAWAL It contains a provision for constitutional interpretation in the High	18. APPELLATE AND ORIGINAL JURISDICTION A Superior Court (both superior and High Court) can
19. HIGH COURT BRANCHES AND ACCESS Article 226: powers of High Court Chief Justice	20. SUBORDINATE JUDICIARY: CONSTITUTIONAL HIERARCHY Article 226: powers of High Court Chief Justice, to appoint the
21. APPOINTMENT OF DISTRICT JUDGES Appoint and remove district judges under Article 226, the	22. RECRUITMENT BELOW DISTRICT JUDGE All state judges are recruited in a state of the judiciary, where
23. ARTICLE 226 CONTROL State of West Bengal / Supreme Court has the right to control that	24. DISTRICT COURT HIERARCHY Article 226: the "State Court" (state) to include the
25. ADMINISTRATIVE AND JUDICIAL RESPONSIBILITIES Article 226: powers of High Court Chief Justice, to appoint the	26. LEGAL AID UNDER ARTICLE 226 The legal aid under Article 226, the
27. LOK ADALATS AND PERMANENT LOK ADALATS Non-judicial dispute resolution cannot be called through Lok	28. LOK ADALAT VERSUS ARBITRATION Lok Adalat is an arbitral institution and arbitrator, where
29. FAMILY COURTS AND GRAM NYAYALAYS Family Courts provide procedure for family disputes, while	30. ALL INDIA JUDICIAL SERVICE All court constitutionally secure state before district judge
31. VACANCY AND PENDING PROBLEM Provision is provided for meeting state volume, state	32. SCOUTS PHASE II In addition to the judicial branch, judicial branch, judicial
33. NATIONAL JUDICIAL DATA GRID AND DATA GOVERNANCE Data is used to monitor the state of the judiciary, and	34. GOVERNMENT LITIGATION AND CASE MANAGEMENT The government's role in the judiciary, the
35. JUDICIAL INDEPENDENCE AND ACCOUNTABILITY Judicial independence is not a state of the judiciary, and	36. ARTICLES 214-217 BAPD MAP Article 214: the state of the judiciary, the

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Polity 21 - High Court and Subordinate Courts - Complete Topic Package

Subject: Indian Polity | **Topic:** 21 | **GS-II + Prelims** | **Export date:** 2026-08-28 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, judicial or officially verified proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated legal/current control; [LIMIT] qualification preventing overstatement.

Package method, source priority and current control

- Source order followed: basic/High-Court.md -> advanced/21_High-Court-and-Subordinate-Courts.md -> basic/Lok-Adalats-and-Other-Courts.md -> Polity 18 Supreme Court cross-link -> official Department of Justice/eCourts material and current appointment control. Qdrant was not used.
- [FACT] The Core owner supersedes stale or less-qualified Advanced statements.
- [CURRENT] Legal and institutional status is controlled to **5 September 2026, Asia/Kolkata**.
- [CURRENT] India has **25 High Courts**; some exercise jurisdiction over more than one State or Union Territory.
- [CURRENT] High Court vacancy figures are dynamic. The Department of Justice statement dated **1 July 2026** records **1,122 sanctioned posts, 781 working judges and 341 vacancies**; quote the date and re-verify before later reuse.
- [CURRENT] The collegium system remains operative. The NJAC is not in force after the Supreme Court's 2015 decision.
- [CURRENT] An All India Judicial Service has **not** been created. Article 312 permits one only after the prescribed Rajya Sabha resolution and parliamentary law, and Article 312(3) excludes posts below district judge.
- [CURRENT] *Rejanish K.V. v. K. Deepa* (2025) prospectively overruled *Dheeraj Mor* and permits qualifying serving judicial officers to compete in direct District-Judge recruitment under the Court's combined-experience, minimum-age and application-date rules.
- [CURRENT] *All India Judges Association v. Union of India* (20 May 2025) restored a prospective three-year Bar-practice condition for Civil Judge (Junior Division) recruitment and revised promotion channels in the district judiciary.
- [CURRENT] eCourts Phase III, approved for 2023-2027 with an official outlay of Rs 7,210 crore, is under implementation for digitisation, e-filing, e-payments, paperless courts, data-based case management and e-Sewa Kendras.
- [LIMIT] Technology improves access and administration but cannot substitute for judges, court staff, legal aid, reasoned adjudication or procedural fairness.
- Official current sources: Department of Justice eCourts division and vacancy dashboard; Supreme Court collegium resolutions; eCourts portal.
- Package target: independently answer-complete Foundation/Core, Optional Advanced refinements, more than 35 text-native visuals, two solved cross-owned Mains PYQ routes, two routed Prelims demands, 36 original MCQs, 12 remedial MCQs and eight original solved Mains questions.

Roadmap

Stage	Coverage	Exam outcome
Integrated judiciary	Articles 214-237	Locates High Courts and district judiciary
High Court organisation	composition, common HCs, seats and benches	Solves institutional traps
Judges	appointment, qualification, tenure, transfer and removal	Handles independence questions
Jurisdiction	original, appellate, writ, review and contempt	Builds complete answers
Writs	Articles 32 and 226 comparison	Solves high-frequency Prelims/Mains
Superintendence	Articles 227-228	Distinguishes appeal from supervision
Subordinate courts	Articles 233-237 and hierarchy	Explains district judicial independence
Access to justice	Article 39A, legal aid, Lok Adalats and Gram Nyayalayas	Connects institutions to citizens
Reform	vacancies, pendency, AIJS, eCourts and case management	Adds current analytical depth
Workbook	PYQs, MCQs, remedials and Mains models	Converts coverage into marks

Scope ownership and cross-links

- **Polity 18 - Supreme Court:** full collegium evolution, NJAC, Article 32, SLP, judicial accountability and constitutional review.
- **Polity 34 - Attorney General and Advocate General:** State law officer under Article 165.
- **Polity 46 - Administrative Tribunals:** tribunal design and *L. Chandra Kumar (1997)* review.
- **Lok Adalats and Other Courts:** detailed statutory comparison of Lok Adalats, Permanent Lok Adalats, Family Courts and Gram Nyayalayas.
- [LIMIT] This package owns State-level constitutional courts and the district judiciary. Cross-links prevent duplication while the Foundation/Core remains independently answer-complete.

DEEP-REVIEW LEARNING CONTRACT

Control	Binding rule for this package
Syllabus boundary	Complete Polity Basic/Core is answer-complete before optional Advanced depth.
Text hierarchy	Constitution/Act/rule/notification -> binding judgment -> authoritative institution -> Constituent Assembly material -> standard textbook.
Legal precision	State exact Article, Part, Schedule, amendment, case, date, institution, procedure, exception and current operative status.
Doctrine method	Text -> institutional mechanism -> controlling case -> exception/limit -> present legal status.
Chronology	Enactment, commencement, amendment, judgment and implementation dates remain separate.
Boundary method	Topic ownership and cross-owner bridges are explicit; adjacent PYQs never become fabricated direct routes.
Practice contract	Every solved item has demand decoding, examiner-grade model, timed compression plan, marks rationale and answer-specific improvement.
Approval	This immutable successor remains approved: false pending explicit approval.

Canonical Basic/Core owner: upsc-ai-kit\knowledge\Polity\basic\High-Court.md **Canonical topic owner:** upsc-ai-kit\knowledge\Polity\21_High-Court-and-Subordinate-Courts_Complete-Topic-Package.md **Optional Advanced owner:**

EVIDENCE, PYQ AND CURRENT-STATUS CONTROL

- **Four independent ledgers:** literal syllabus/index, indispensable

prerequisites, standard textbook taxonomy and complete routed 2018-2026 PYQ demands were built before repair.

- **Hostile search:** missing Articles, Parts, Schedules, amendments, cases,

institutional mechanisms, exceptions, chronology, source status and cross-owner boundaries are hard failures.

- **Answer rule:** claim -> exact constitutional/statutory/case evidence ->

institutional analysis -> exception or qualification.

- **Current-status note, rechecked 2026-09-05:** Rechecked 2026-09-05: India has 25 High Courts. The dated DoJ 1 July 2026 snapshot records 1,122 sanctioned, 781 working and 341 vacant posts. Rejanish K.V. (2025 INSC 1208) is the current direct-District-Judge eligibility control; no All India Judicial Service exists.

Authoritative live sources:

- <https://legislative.gov.in/document/constitution-of-india-in-english>
- <https://doj.gov.in/static/uploads/2026/07/b18601168f894d13fdde14296d79e6b3.pdf>
- https://api.sci.gov.in/supremecourt/2020/26442/26442_2020_1_1501_64994_Judgement_09-Oct-2025.pdf
- https://www.api.sci.gov.in/supremecourt/2020/26442/26442_2020_1_1502_63276_Judgement_12-Aug-2025.pdf
- https://ecourts.gov.in/ecourts_home/

BASIC LEARNING SESSION



Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SESSION 1 - ONE INTEGRATED JUDICIARY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 214-231 govern High Courts; Articles 233-237 govern subordinate courts.

Technical definition: A High Court is the highest constitutional court within its territorial jurisdiction, subject to Supreme Court appellate and constitutional authority.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

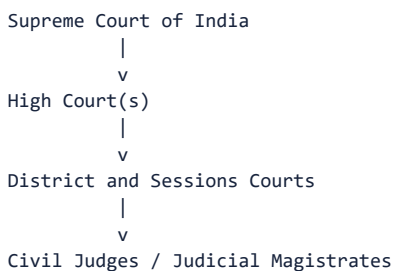
One integrated judiciary: Articles 214-231 govern High Courts; Articles 233-237 govern subordinate courts.

MUST-WRITE KEYWORDS

- One
- High
- Court
- Supreme

How to use them: Frame the answer through One; define High, connect Court with Supreme to explain the mechanism, and close with the decisive comparison or qualification.

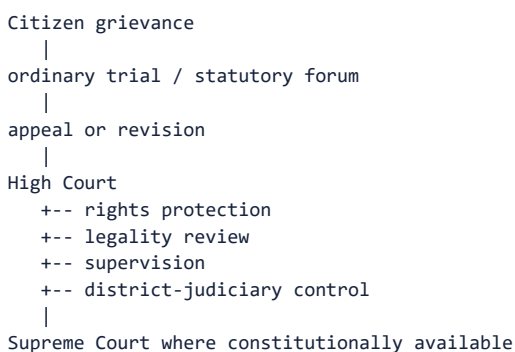
Visual 1 - Judicial hierarchy



Caption: India has an integrated hierarchy rather than separate federal and State court systems.

- [FACT] Articles 214-231 govern High Courts; Articles 233-237 govern subordinate courts.
- [FACT] A High Court is the highest constitutional court within its territorial jurisdiction, subject to Supreme Court appellate and constitutional authority.
- [FACT] The High Court is not merely an appellate court; it is a writ court, court of record, supervisory authority and administrative controller of the subordinate judiciary.
- [ANALYSIS] Integration promotes legal unity while decentralising everyday constitutional remedies.

Visual 2 - Functional chain



CLOSING RECALL FLOW - ONE INTEGRATED JUDICIARY

START / CONCEPT: One integrated judiciary

|

v

EXACT TERMS: One · High · Court · Supreme

|

v

MECHANISM / ARGUMENT: The High Court is not merely an appellate court; it is a writ court, court of record, supervisory authority and administrative controller of the subordinate judiciary.

|

v

CONSEQUENCE / CONTRAST: Integration promotes legal unity while decentralising everyday constitutional remedies.

|

v

UPSC TRAP / ANSWER-USE: Integrated precedent does not create one centrally administered court service.

|

v

ANSWER-GRABBING FORMULATION: One integrated judiciary: Articles 214-231 govern High Courts; Articles 233-237 govern subordinate courts.

SESSION 2 - HISTORICAL AND CONSTITUTIONAL LOCATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The first chartered High Courts were established at Calcutta, Bombay and Madras in 1862; Allahabad followed in 1866.

Technical definition: Article 214 states that there shall be a High Court for each State.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Historical and constitutional location: The first chartered High Courts were established at Calcutta, Bombay and Madras in 1862; Allahabad followed in 1866.

MUST-WRITE KEYWORDS

- Historical
- Article 214
- High
- Court

How to use them: Frame the answer through Historical; define Article 214, connect High with Court to explain the mechanism, and close with the decisive comparison or qualification.

- [FACT] The first chartered High Courts were established at Calcutta, Bombay and Madras in 1862; Allahabad followed in 1866.
- [FACT] Article 214 states that there shall be a High Court for each State.
- [FACT] Article 231 permits a common High Court for two or more States or for States and Union Territories.
- [FACT] The common-High-Court provision reflects the Seventh Amendment reorganisation framework.
- [CURRENT] There are 25 High Courts, not one for every State.

Visual 3 - One-per-State rule and common-HC exception

Constitutional idea	Position
Default	High Court for each State
Permitted arrangement	Common High Court for multiple States/UTs
Total current High Courts	25
Consequence	Court count is lower than State/UT count

UPSC trap: Article 214's language must be read with Article 231.

CLOSING RECALL FLOW - HISTORICAL AND CONSTITUTIONAL LOCATION

START / CONCEPT: Historical and constitutional location

|

v

EXACT TERMS: Historical · Article 214 · High · Court

|

v

MECHANISM / ARGUMENT: Article 231 permits a common High Court for two or more States or for States and Union Territories.

|

v

CONSEQUENCE / CONTRAST: Constitutionalisation converted inherited courts into rights-enforcing institutions.

|

v

UPSC TRAP / ANSWER-USE: Colonial origin does not make a present High Court a statutory body.

|

v

ANSWER-GRABBING FORMULATION: Historical and constitutional location: The first chartered High Courts were established at Calcutta, Bombay and Madras in 1862; Allahabad followed in 1866.

SESSION 3 - COMPOSITION AND SANCTIONED STRENGTH

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: High Court composition includes a Chief Justice and other judges, while sanctioned strength varies rather than remaining constitutionally uniform.

Technical definition: Sanctioned strength varies according to institutional decisions and workload assessment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Composition and sanctioned strength: The Constitution does not fix a uniform number of judges for each High Court.

MUST-WRITE KEYWORDS

- **Article 216**
- **sanctioned strength**
- **working strength**
- **vacancies**

How to use them: Frame the answer through Article 216; define sanctioned strength, connect working strength with vacancies to explain the mechanism, and close with the decisive comparison or qualification.

Visual 4 - Article 216

High Court

+-- Chief Justice

+-- other judges as President considers necessary

- [FACT] The Constitution does not fix a uniform number of judges for each High Court.
- [FACT] Sanctioned strength varies according to institutional decisions and workload assessment.
- [CURRENT] Working strength and vacancy figures change frequently; quote only a dated official source.
- [ANALYSIS] A constitutionally broad jurisdiction can be weakened in practice when sanctioned posts are vacant or infrastructure is inadequate.

CLOSING RECALL FLOW - COMPOSITION AND SANCTIONED STRENGTH

START / CONCEPT: Composition and sanctioned strength

|

v

EXACT TERMS: Article 216 · sanctioned strength · working strength · vacancies

|

v

MECHANISM / ARGUMENT: Working strength and vacancy figures change frequently; quote only a dated official source.

|

v

CONSEQUENCE / CONTRAST: A constitutionally broad jurisdiction can be weakened in practice when sanctioned posts are vacant or infrastructure is inadequate.

|

v

UPSC TRAP / ANSWER-USE: Do not confuse sanctioned posts, working judges and vacancies.

|

v

ANSWER-GRABBING FORMULATION: Composition and sanctioned strength: The Constitution does not fix a uniform number of judges for each High Court.

SESSION 4 - APPOINTMENT OF HIGH COURT JUDGES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 217 provides appointment by the President after consultation with the Chief Justice of India, the Governor and, for a puisne judge, the Chief Justice of the High Court.

Technical definition: Current collegium practice is judicially developed rather than written in Article 217.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Appointment of High Court judges: Article 217 provides appointment by the President after consultation with the Chief Justice of India, the Governor and, for a puisne judge, the Chief Justice of the High Court.

MUST-WRITE KEYWORDS

- Appointment
- High
- Court
- Article 217

How to use them: Frame the answer through Appointment; define High, connect Court with Article 217 to explain the mechanism, and close with the decisive comparison or qualification.

Visual 5 - Constitutional text and collegium practice

Originating High Court process
HC Chief Justice + consultation with two senior colleagues
|
State inputs / Governor channel
|
Supreme Court collegium
CJI + two senior-most SC judges for HC appointments
|
Union processing
|
President appoints under Article 217

- [FACT] Article 217 provides appointment by the President after consultation with the Chief Justice of India, the Governor and, for a puisne judge, the Chief Justice of the High Court.
- [FACT] Current collegium practice is judicially developed rather than written in Article 217.
- [FACT] The initiating High Court Chief Justice consults the two senior-most colleagues.
- [FACT] At the Supreme Court stage, High Court appointments are considered by the CJI and two senior-most Supreme Court judges.

- [LIMIT] Executive inputs and processing remain part of the appointment pipeline; "judicial primacy" does not mean the executive has no role.

Visual 6 - Text versus doctrine

Layer	Source	Content
Constitutional text	Article 217	President and specified consultations
Judicial doctrine	Judges Cases	collegium and judicial primacy
Administrative practice	Memorandum of Procedure	processing, intelligence and timelines
Current status	2026	collegium operative; NJAC not in force

CLOSING RECALL FLOW - APPOINTMENT OF HIGH COURT JUDGES

START / CONCEPT: Appointment of High Court judges
 |
 v
 EXACT TERMS: Appointment · High · Court · Article 217
 |
 v
 MECHANISM / ARGUMENT: The initiating High Court Chief Justice consults the two senior-most colleagues.
 |
 v
 CONSEQUENCE / CONTRAST: Plural consultation protects independence but can diffuse responsibility for delay.
 |
 v
 UPSC TRAP / ANSWER-USE: Article 217 does not itself state the collegium's numerical composition.
 |
 v
 ANSWER-GRABBING FORMULATION: Appointment of High Court judges: Article 217 provides appointment by the President after consultation with the Chief Justice of India, the Governor and, for a puisne judge, the Chief Justice of the High Court.

SESSION 5 - QUALIFICATIONS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: High Court judge qualifications under Article 217 require citizenship and ten-year professional experience, but specify no minimum age.

Technical definition: "Distinguished jurist" is not a High Court eligibility route.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Qualifications: No minimum age is specified.

MUST-WRITE KEYWORDS

- **Qualifications**
- **Distinguished**
- **High**
- **Court**

How to use them: Frame the answer through Qualifications; define Distinguished, connect High with Court to explain the mechanism, and close with the decisive comparison or qualification.

Visual 7 - Article 217 eligibility

Requirement	Route 1	Route 2
Citizenship	Indian citizen	Indian citizen
Experience	at least 10 years in judicial office	at least 10 years as advocate of one or more High Courts

- [FACT] No minimum age is specified.
- [FACT] "Distinguished jurist" is not a High Court eligibility route.
- [FACT] Questions about experience computation are governed by constitutional and statutory detail.

Mnemonic: High Court = citizen + 10 judicial years OR 10 advocacy years; no jurist route.

CLOSING RECALL FLOW - QUALIFICATIONS

START / CONCEPT: Qualifications

|

v

EXACT TERMS: Qualifications · Distinguished · High · Court

|

v

MECHANISM / ARGUMENT: Questions about experience computation are governed by constitutional and statutory detail.

|

v

CONSEQUENCE / CONTRAST: Professional-experience routes exclude political or academic reputation alone.

|

v

UPSC TRAP / ANSWER-USE: Distinguished jurist is not a High Court eligibility route.

|

v

ANSWER-GRABBING FORMULATION: Qualifications: No minimum age is specified.

SESSION 6 - OATH, TENURE AND RETIREMENT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A High Court judge takes the prescribed oath and serves until retirement at sixty-two unless resignation or removal ends tenure earlier.

Technical definition: Resignation is addressed to the President.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Oath, tenure and retirement: A High Court judge retires at 62; a Supreme Court judge retires at 65.

MUST-WRITE KEYWORDS

- **Article 219**
- **retirement age**
- **resignation**
- **removal**

How to use them: Frame the answer through Article 219; define retirement age, connect resignation with removal to explain the mechanism, and close with the decisive comparison or qualification.

Visual 8 - Office cycle

President appoints

|

Governor (or authorised person) administers oath: Article 219

|

holds office until age 62

|

resignation / removal / SC elevation / transfer

- [FACT] A High Court judge retires at 62; a Supreme Court judge retires at 65.
- [FACT] Resignation is addressed to the President.
- [FACT] Oath is made before the Governor or a person appointed by the Governor.
- [FACT] Age disputes are determined through the constitutional mechanism under Article 217.

- [ANALYSIS] Retirement-age difference can encourage post-High-Court elevation competition and recurrent reform proposals.

CLOSING RECALL FLOW - OATH, TENURE AND RETIREMENT

START / CONCEPT: Oath, tenure and retirement
 ↓
 EXACT TERMS: Article 219 · retirement age · resignation · removal
 ↓
 MECHANISM / ARGUMENT: Oath is made before the Governor or a person appointed by the Governor.
 ↓
 CONSEQUENCE / CONTRAST: Retirement-age difference can encourage post-High-Court elevation competition and recurrent reform proposals.
 ↓
 UPSC TRAP / ANSWER-USE: High Court retirement is sixty-two, not sixty-five.
 ↓
 ANSWER-GRABBING FORMULATION: Oath, tenure and retirement: A High Court judge retires at 62; a Supreme Court judge retires at 65.

SESSION 7 - REMOVAL AND INDEPENDENCE SAFEGUARDS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: High Court judges use the same stringent constitutional removal standard applicable to Supreme Court judges through Article 217 read with Article 124(4).

Technical definition: Removal is not by the Governor, Chief Minister or High Court Chief Justice.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Removal and independence safeguards: High Court judges use the same stringent constitutional removal standard applicable to Supreme Court judges through Article 217 read with Article 124(4).

MUST-WRITE KEYWORDS

- Removal
- Governor
- Chief
- Minister
- High

How to use them: Frame the answer through Removal; define Governor, connect Chief with Minister to explain the mechanism, and use High for the decisive comparison or qualification.

Visual 9 - Removal route

proved misbehaviour or incapacity
 ↓
 Parliamentary investigation/process
 ↓
 special-majority address by each House
 ↓
 President removes

- [FACT] High Court judges use the same stringent constitutional removal standard applicable to Supreme Court judges through Article 217 read with Article 124(4).
- [FACT] Removal is not by the Governor, Chief Minister or High Court Chief Justice.
- [FACT] Salaries and service conditions are constitutionally protected, subject to constitutionally permitted changes.
- [FACT] Administrative expenses of a High Court are charged on the Consolidated Fund of the State.

- [ANALYSIS] Security of tenure protects decisional independence; accountability remains possible through removal and judicial ethics mechanisms.

Visual 10 - Independence safeguards

Safeguard	Purpose
Difficult removal	protects against political retaliation
Protected service conditions	reduces financial pressure
Judicial primacy in appointments	limits executive domination
Article 222 consultation	controls transfer power
Article 235 control	shields district judges from State executive
Article 226/227 basic-structure review	preserves constitutional function

CLOSING RECALL FLOW - REMOVAL AND INDEPENDENCE SAFEGUARDS

START / CONCEPT: Removal and independence safeguards

|

v

EXACT TERMS: Removal • Governor • Chief • Minister • High

|

v

MECHANISM / ARGUMENT: Salaries and service conditions are constitutionally protected, subject to constitutionally permitted changes.

|

v

CONSEQUENCE / CONTRAST: Security of tenure protects decisional independence; accountability remains possible through removal and judicial ethics mechanisms.

|

v

UPSC TRAP / ANSWER-USE: A Governor or Chief Minister cannot remove a High Court judge.

|

v

ANSWER-GRABBING FORMULATION: Removal and independence safeguards: High Court judges use the same stringent constitutional removal standard applicable to Supreme Court judges through Article 217 read with Article 124(4).

SESSION 8 - TRANSFER OF JUDGES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 222 permits presidential transfer after consultation with the CJI.

Technical definition: For transfer of a High Court judge under Article 222, the judge's consent is not a constitutional prerequisite.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Transfer of judges: Article 222 permits presidential transfer after consultation with the CJI.

MUST-WRITE KEYWORDS

- Article 222
- CJI consultation
- public interest
- judicial transfer

How to use them: Frame the answer through Article 222; define CJI consultation, connect public interest with judicial transfer to explain the mechanism, and close with the decisive comparison or qualification.

Visual 11 - Article 222

Need/public-interest consideration
|
CJI-led collegium consultation
|
President transfers judge
|
compensatory allowance as provided

- [FACT] Article 222 permits presidential transfer after consultation with the CJI.
- [FACT] A judge's consent is not a constitutional prerequisite.
- [FACT] Under the current Memorandum-of-Procedure framework, the CJI consults the four senior-most Supreme Court judges and the Chief Justices of the transferor and transferee High Courts.
- [ANALYSIS] Transfer can address administration and local entrenchment but can also be perceived as punitive.
- [LIMIT] The legitimate standard is public interest through institutional consultation, not executive punishment.
- [FACT] *Sankalchand Himmatlal Sheth (1977)* and the Judges Cases form part of the transfer-and-consultation doctrinal history.

CLOSING RECALL FLOW - TRANSFER OF JUDGES

START / CONCEPT: Transfer of judges
|
v
EXACT TERMS: Article 222 · CJI consultation · public interest · judicial transfer
|
v
MECHANISM / ARGUMENT: Under the current Memorandum-of-Procedure framework, the CJI consults the four senior-most Supreme Court judges and the Chief Justices of the transferor and transferee High Courts.
|
v
CONSEQUENCE / CONTRAST: Transfer can address administration and local entrenchment but can also be perceived as punitive.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: no-consent transfer still requires full consultation and public interest.
|
v
ANSWER-GRABBING FORMULATION: Transfer of judges: Article 222 permits presidential transfer after consultation with the CJI.

SESSION 9 - ACTING, ADDITIONAL AND RETIRED JUDGES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Additional and acting judges are constitutional capacity devices, not substitutes for regular appointments.

Technical definition: A retired judge under Article 224A is not thereby treated as a permanent serving judge for all purposes.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Acting, additional and retired judges: Additional and acting judges are constitutional capacity devices, not substitutes for regular appointments.

MUST-WRITE KEYWORDS

- Article 223
- Article 224
- Article 224A
- temporary capacity

How to use them: Frame the answer through Article 223; define Article 224, connect Article 224A with temporary capacity to explain the mechanism, and close with the decisive comparison or qualification.

Visual 12 - Temporary capacity tools

Article	Mechanism	Trigger
223	Acting Chief Justice	vacancy or absence/inability
224	Additional judge	temporary increase in business or arrears
224	Acting judge	permanent judge absent/unable
224A	Retired judge sits and acts	request by CJ with President's prior consent

- [FACT] Additional and acting judges are constitutional capacity devices, not substitutes for regular appointments.
- [FACT] A retired judge under Article 224A is not thereby treated as a permanent serving judge for all purposes.
- [ANALYSIS] Stop-gap appointments can reduce immediate pressure but do not cure systemic vacancy pipelines.

CLOSING RECALL FLOW - ACTING, ADDITIONAL AND RETIRED JUDGES

START / CONCEPT: Acting, additional and retired judges

|

v

EXACT TERMS: Article 223 • Article 224 • Article 224A • temporary capacity

|

v

MECHANISM / ARGUMENT: Stop-gap appointments can reduce immediate pressure but do not cure systemic vacancy pipelines.

|

v

CONSEQUENCE / CONTRAST: The resulting consequence is that stop-gap appointments can reduce immediate pressure but do not cure systemic vacancy pipelines.

|

v

UPSC TRAP / ANSWER-USE: Articles 223, 224 and 224A are not interchangeable.

|

v

ANSWER-GRABBING FORMULATION: Acting, additional and retired judges: Additional and acting judges are constitutional capacity devices, not substitutes for regular appointments.

SESSION 10 - COURT OF RECORD AND CONTEMPT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 215 declares every High Court a court of record and gives contempt power.

Technical definition: Contempt protects administration of justice, not judicial immunity from fair criticism.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Court of record and contempt: Article 215 declares every High Court a court of record and gives contempt power.

MUST-WRITE KEYWORDS

- **Article 215**
- **court of record**
- **contempt power**
- **constitutional status**

How to use them: Frame the answer through Article 215; define court of record, connect contempt power with constitutional status to explain the mechanism, and close with the decisive comparison or qualification.

Visual 13 - Article 215

HIGH COURT AS COURT OF RECORD

- +-- records have evidentiary authority
- +-- decisions form binding precedent within hierarchy
- +-- power to punish for contempt of itself

- [FACT] Article 215 declares every High Court a court of record and gives contempt power.
- [ANALYSIS] Contempt protects administration of justice, not judicial immunity from fair criticism.
- [LIMIT] Contempt power is governed by constitutional principles and statute; it is not unlimited personal protection for judges.

CLOSING RECALL FLOW - COURT OF RECORD AND CONTEMPT

START / CONCEPT: Court of record and contempt

|
v

EXACT TERMS: Article 215 · court of record · contempt power · constitutional status

|
v

MECHANISM / ARGUMENT: Contempt power is governed by constitutional principles and statute; it is not unlimited personal protection for judges.

|
v

CONSEQUENCE / CONTRAST: Contempt protects administration of justice, not judicial immunity from fair criticism.

|
v

UPSC TRAP / ANSWER-USE: Contempt power does not suppress fair criticism or appellate review.

|
v

ANSWER-GRABBING FORMULATION: Court of record and contempt: Article 215 declares every High Court a court of record and gives contempt power.

SESSION 11 - JURISDICTION MASTER MAP

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Original civil jurisdiction is not uniform across all High Courts.

Technical definition: The older chartered High Courts and Delhi possess specified original civil jurisdiction under applicable law.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Jurisdiction master map: Original civil jurisdiction is not uniform across all High Courts.

MUST-WRITE KEYWORDS

- Jurisdiction
- High
- Courts
- Delhi

How to use them: Frame the answer through Jurisdiction; define High, connect Courts with Delhi to explain the mechanism, and close with the decisive comparison or qualification.

Visual 14 - High Court jurisdiction

Jurisdiction	Core content
Original	writs, contempt, election matters and specified civil/admiralty fields
Writ	Article 226 rights and other legal purposes
Appellate	civil and criminal appeals
Supervisory	Article 227 over courts and tribunals
Constitutional withdrawal	Article 228
Judicial review	invalidates unconstitutional law/action
Administrative control	Article 235 over subordinate judiciary

- [LIMIT] Original civil jurisdiction is not uniform across all High Courts.
- [FACT] The older chartered High Courts and Delhi possess specified original civil jurisdiction under applicable law.

CLOSING RECALL FLOW - JURISDICTION MASTER MAP

START / CONCEPT: Jurisdiction master map
 |
 v
 EXACT TERMS: Jurisdiction • High • Courts • Delhi
 |
 v
 MECHANISM / ARGUMENT: The older chartered High Courts and Delhi possess specified original civil jurisdiction under applicable law.
 |
 v
 CONSEQUENCE / CONTRAST: A source-based map prevents writ, appeal and supervision from being conflated.
 |
 v
 UPSC TRAP / ANSWER-USE: Not every High Court has identical ordinary original civil jurisdiction.
 |
 v
 ANSWER-GRABBING FORMULATION: Jurisdiction master map: Original civil jurisdiction is not uniform across all High Courts.

SESSION 12 - ARTICLE 226: THE CITIZEN'S WIDE CONSTITUTIONAL REMEDY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 226 is wider than Article 32 in purpose.

Technical definition: Article 32 has wider national territorial reach and is itself a Fundamental Right.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 226: the citizen's wide constitutional remedy: Article 226 is wider than Article 32 in purpose.

MUST-WRITE KEYWORDS

- Article 226
- Article 32
- Fundamental
- Right

How to use them: Frame the answer through Article 226; define Article 32, connect Fundamental with Right to explain the mechanism, and close with the decisive comparison or qualification.

Visual 15 - Scope comparison

Article 32

Fundamental Rights only
remedy itself is a Fundamental Right
Supreme Court / all-India reach

Article 226

Fundamental Rights + any other legal purpose
constitutional power, not itself a FR
territorial/cause-of-action limits

- [FACT] Article 226 is wider than Article 32 in **purpose**.
- [FACT] Article 32 has wider national territorial reach and is itself a Fundamental Right.
- [FACT] Article 226(2) permits action where the cause of action arises wholly or partly within the High Court's territory even if the authority is located elsewhere.
- [FACT] The cause-of-action extension came through the Fifteenth Amendment.
- [FACT] Article 226(3) supplies an expedited safeguard against an ex parte interim order: once the prescribed vacation application and copies are furnished, the High Court must dispose of it within two weeks from the later trigger (or by the next open day where the last day is closed), failing which the interim order stands vacated.
- [LIMIT] "Article 226 is wider" does not mean unlimited territorial jurisdiction.

CLOSING RECALL FLOW - ARTICLE 226: THE CITIZEN'S WIDE CONSTITUTIONAL REMEDY

START / CONCEPT: Article 226: the citizen's wide constitutional remedy

|

v

EXACT TERMS: Article 226 • Article 32 • Fundamental • Right

|

v

MECHANISM / ARGUMENT: Article 226(2) permits action where the cause of action arises wholly or partly within the High Court's territory even if the authority is located elsewhere.

|

v

CONSEQUENCE / CONTRAST: Wide purpose and local access make Article 226 the everyday rule-of-law remedy.

|

v

UPSC TRAP / ANSWER-USE: Wider purpose does not mean nationwide or automatic relief.

|

v

ANSWER-GRABBING FORMULATION: Article 226: the citizen's wide constitutional remedy: Article 226 is wider than Article 32 in purpose.

SESSION 13 - THE FIVE WRITS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 226 authorises writs as well as directions and orders.

Technical definition: Mandamus ordinarily does not compel a purely private person or discretionary act without legal duty.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The five writs: Article 226 authorises writs as well as directions and orders.

MUST-WRITE KEYWORDS

- **habeas corpus**
- **mandamus**
- **prohibition**
- **certiorari**
- **quo warranto**

How to use them: Frame the answer through habeas corpus; define mandamus, connect prohibition with certiorari to explain the mechanism, and use quo warranto for the decisive comparison or qualification.

Visual 16 - Writ decision table

Writ	Question answered	Typical target
Habeas corpus	Is detention lawful?	public or private detainer
Mandamus	Is a public/legal duty being refused?	public authority
Prohibition	Is a lower forum exceeding jurisdiction before completion?	court/tribunal
Certiorari	Has a jurisdictionally defective order been made?	court/tribunal/authority
Quo warranto	By what authority is public office held?	public office-holder

- [FACT] Article 226 authorises writs as well as directions and orders.
- [LIMIT] Mandamus ordinarily does not compel a purely private person or discretionary act without legal duty.
- [FACT] Habeas corpus may operate against private detention.
- [FACT] Prohibition prevents; certiorari quashes.
- [FACT] Quo warranto focuses on lawful title to public office and can relax ordinary standing rules.

Visual 17 - Memory line

BODY detained?	HABEAS CORPUS
DUTY refused?	MANDAMUS
PROCEEDING ongoing?	PROHIBITION
ORDER completed?	CERTIORARI
OFFICE usurped?	QUO WARRANTO

CLOSING RECALL FLOW - THE FIVE WRITS

START / CONCEPT: The five writs
|
v
EXACT TERMS: habeas corpus • mandamus • prohibition • certiorari • quo warranto
|
v
MECHANISM / ARGUMENT: Habeas corpus may operate against private detention.
|
v
CONSEQUENCE / CONTRAST: Remedy matching turns abstract jurisdiction into executable constitutional relief.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: prohibition stops; certiorari quashes; habeas corpus tests detention.
|
v
ANSWER-GRABBING FORMULATION: The five writs: Article 226 authorises writs as well as directions and orders.

SESSION 14 - ALTERNATIVE-REMEDY RULE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The alternative-remedy rule is a rule of judicial discretion and self-restraint, not an absolute jurisdictional bar.

Technical definition: The standard exceptions include enforcement of Fundamental Rights, natural-justice failure, want of jurisdiction and challenge to vires.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Alternative-remedy rule: The alternative-remedy rule is a rule of judicial discretion and self-restraint, not an absolute jurisdictional bar.

MUST-WRITE KEYWORDS

- alternative-remedy rule

- judicial discretion
- statutory remedy
- writ jurisdiction

How to use them: Frame the answer through alternative-remedy rule; define judicial discretion, connect statutory remedy with writ jurisdiction to explain the mechanism, and close with the decisive comparison or qualification.

Visual 18 - Writ discretion

Statutory remedy exists?

```

|
+-- ordinarily use appeal/revision first
|
+-- but HC may intervene for:
    Fundamental Rights
    natural-justice failure
    lack of jurisdiction
    constitutional challenge
  
```

- [FACT] The alternative-remedy rule is a rule of judicial discretion and self-restraint, not an absolute jurisdictional bar.
- [FACT] The standard exceptions include enforcement of Fundamental Rights, natural-justice failure, want of jurisdiction and challenge to vires.
- [ANALYSIS] It protects statutory forums while preserving rapid constitutional relief for serious illegality.
- [LIMIT] Article 226 should not become a routine substitute for every trial or appeal.

CLOSING RECALL FLOW - ALTERNATIVE-REMEDY RULE

START / CONCEPT: Alternative-remedy rule

|
v

EXACT TERMS: alternative-remedy rule · judicial discretion · statutory remedy · writ jurisdiction

|
v

MECHANISM / ARGUMENT: It protects statutory forums while preserving rapid constitutional relief for serious illegality.

|
v

CONSEQUENCE / CONTRAST: The resulting consequence is that it protects statutory forums while preserving rapid constitutional relief for serious illegality.

|
v

UPSC TRAP / ANSWER-USE: Alternative remedy guides discretion; it does not erase jurisdiction.

|
v

ANSWER-GRABBING FORMULATION: Alternative-remedy rule: The alternative-remedy rule is a rule of judicial discretion and self-restraint, not an absolute jurisdictional bar.

SESSION 15 - JUDICIAL REVIEW AS BASIC STRUCTURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: L. Chandra Kumar (1997) treats High Court review under Articles 226 and 227 as part of the Basic Structure.

Technical definition: Decisions of tribunals constituted under Articles 323A/323B remain subject to scrutiny before a High Court Division Bench.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Judicial review as Basic Structure: L. Chandra Kumar (1997) preserves High Court scrutiny of tribunal decisions under Articles 226 and 227.

MUST-WRITE KEYWORDS

- Judicial

- **Basic**
- **Structure**
- **Decisions**
- **Articles 323A/**

How to use them: Frame the answer through Judicial; define Basic, connect Structure with Decisions to explain the mechanism, and use Articles 323A/ for the decisive comparison or qualification.

Visual 19 - L. Chandra Kumar (1997) control

Tribunal decides
|
High Court Division Bench review under Articles 226/227
|
Supreme Court where available

- [FACT] *L. Chandra Kumar (1997) v. Union of India (1997)* held judicial review under Articles 226/227 and 32 to be part of the Basic Structure.
- [FACT] Decisions of tribunals constituted under Articles 323A/323B remain subject to scrutiny before a High Court Division Bench.
- [LIMIT] The judgment did not abolish tribunals; it denied them complete substitution for constitutional courts.
- [ANALYSIS] The High Court is the constitutional quality-control layer for decentralised adjudication.

CLOSING RECALL FLOW - JUDICIAL REVIEW AS BASIC STRUCTURE

START / CONCEPT: Judicial review as Basic Structure
|
v
EXACT TERMS: Judicial • Basic • Structure • Decisions • Articles 323A/
|
v
MECHANISM / ARGUMENT: The judgment did not abolish tribunals; it denied them complete substitution for constitutional courts.
|
v
CONSEQUENCE / CONTRAST: The High Court is the constitutional quality-control layer for decentralised adjudication.
|
v
UPSC TRAP / ANSWER-USE: *L. Chandra Kumar (1997)* preserved review; it did not abolish tribunals.
|
v
ANSWER-GRABBING FORMULATION: Judicial review as Basic Structure: *L. Chandra Kumar (1997)* preserves High Court scrutiny of tribunal decisions under Articles 226 and 227.

SESSION 16 - ARTICLE 227 SUPERINTENDENCE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 227 keeps subordinate forums within jurisdiction and ensures regular administration.

Technical definition: *Radhey Shyam v. Chhabi Nath* routes civil-court judicial orders through Article 227 rather than Article 226.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 227 superintendence: Article 227 keeps subordinate forums within jurisdiction and ensures regular administration.

MUST-WRITE KEYWORDS

- **Article 227**
- **superintendence**
- **Radhey Shyam**

- **K. Valarmathi**

How to use them: Frame the answer through Article 227; define superintendence, connect Radhey Shyam with K. Valarmathi to explain the mechanism, and close with the decisive comparison or qualification.

Visual 20 - Supervision, not appeal

Feature	Article 227
Reach	courts and tribunals within territory
Exclusion	Armed-Forces-law forums
Initiation	petition or suo motu
Nature	judicial and administrative superintendence
Restraint	not routine factual reappraisal

- [FACT] Article 227 keeps subordinate forums within jurisdiction and ensures regular administration.
- [FACT] *Radhey Shyam v. Chhabi Nath* (2015) places judicial orders of civil courts under Article 227 supervision rather than Article 226 writ jurisdiction.
- [CURRENT] *K. Valarmathi v. Kumaresan* (2025) reiterates that Article 227 cannot be used to supplant the statutory trial and appellate process.
- [ANALYSIS] If used as a second appeal, superintendence would collapse the statutory hierarchy.
- [LIMIT] Corrective intensity depends on jurisdictional error, grave injustice and procedural failure, not simple disagreement.

CLOSING RECALL FLOW - ARTICLE 227 SUPERINTENDENCE

```

START / CONCEPT: Article 227 superintendence
  |
  v
EXACT TERMS: Article 227 • superintendence • Radhey Shyam • K. Valarmathi
  |
  v
MECHANISM / ARGUMENT: K. Valarmathi v. Kumaresan confirms that Article 227 cannot supplant trial or
statutory appellate remedies.
  |
  v
CONSEQUENCE / CONTRAST: If used as a second appeal, superintendence would collapse the statutory
hierarchy.
  |
  v
UPSC TRAP / ANSWER-USE: Superintendence is not a routine second appeal on facts.
  |
  v
ANSWER-GRABBING FORMULATION: Article 227 superintendence: Article 227 keeps subordinate forums
within jurisdiction and ensures regular administration.

```

SESSION 17 - ARTICLE 228 CONSTITUTIONAL WITHDRAWAL

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 228 is narrower than general appellate jurisdiction.

Technical definition: It centralises authoritative constitutional interpretation in the High Court while allowing ordinary factual adjudication to return below.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 228 constitutional withdrawal: Article 228 is narrower than general appellate jurisdiction.

MUST-WRITE KEYWORDS

- **Article 228**
- **It**

- High
- Court

How to use them: Frame the answer through Article 228; define It, connect High with Court to explain the mechanism, and close with the decisive comparison or qualification.

Visual 21 - Withdrawal route

```

Subordinate-court case
|
substantial constitutional-interpretation question
|
High Court withdraws
|
decides question or whole case
|
may return case with binding answer

```

- [FACT] Article 228 is narrower than general appellate jurisdiction.
- [ANALYSIS] It centralises authoritative constitutional interpretation in the High Court while allowing ordinary factual adjudication to return below.

CLOSING RECALL FLOW - ARTICLE 228 CONSTITUTIONAL WITHDRAWAL

```

START / CONCEPT: Article 228 constitutional withdrawal
|
v
EXACT TERMS: Article 228 • It • High • Court
|
v
MECHANISM / ARGUMENT: It centralises authoritative constitutional interpretation in the High Court
while allowing ordinary factual adjudication to return below.
|
v
CONSEQUENCE / CONTRAST: The High Court settles the constitutional issue and may return the
remaining dispute to the subordinate court.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 228 is confined to
substantial constitutional-interpretation questions.
|
v
ANSWER-GRABBING FORMULATION: Article 228 constitutional withdrawal: Article 228 is narrower than
general appellate jurisdiction.

```

SESSION 18 - APPELLATE AND ORIGINAL JURISDICTION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: High Courts hear civil and criminal appeals under constitutional, procedural and special statutory frameworks.

Technical definition: A Sessions Court death sentence requires High Court confirmation before execution.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Appellate and original jurisdiction: High Courts hear civil and criminal appeals under constitutional, procedural and special statutory frameworks.

MUST-WRITE KEYWORDS

- Appellate
- Sessions
- Court
- High

How to use them: Frame the answer through Appellate; define Sessions, connect Court with High to explain the mechanism, and close with the decisive comparison or qualification.

- [FACT] High Courts hear civil and criminal appeals under constitutional, procedural and special statutory frameworks.
- [FACT] A Sessions Court death sentence requires High Court confirmation before execution.
- [FACT] High Courts hear election petitions concerning Parliament and State legislatures under the Representation of the People Act.
- [FACT] Specified High Courts possess original civil, admiralty or testamentary jurisdiction under applicable law.
- [LIMIT] Jurisdiction varies by statute, pecuniary threshold and local arrangement; avoid claiming identical original jurisdiction for every High Court.

Visual 22 - Criminal control

```

Trial court conviction/sentence
|
statutory appeal/revision
|
High Court
|
death sentence requires confirmation

```

CLOSING RECALL FLOW - APPELLATE AND ORIGINAL JURISDICTION

```

START / CONCEPT: Appellate and original jurisdiction
|
v
EXACT TERMS: Appellate • Sessions • Court • High
|
v
MECHANISM / ARGUMENT: High Courts hear election petitions concerning Parliament and State
legislatures under the Representation of the People Act.
|
v
CONSEQUENCE / CONTRAST: Appellate correction links district fact-finding to authoritative State
precedent.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: local and statutory variation
defeats one uniform original-jurisdiction claim.
|
v
ANSWER-GRABBING FORMULATION: Appellate and original jurisdiction: High Courts hear civil and
criminal appeals under constitutional, procedural and special statutory frameworks.

```

SESSION 19 - HIGH COURT BENCHES AND ACCESS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A High Court may have its principal seat and permanent or circuit benches under applicable reorganisation/statutory arrangements.

Technical definition: Article 229 places appointment of High Court officers and servants with the Chief Justice or authorised officer; service-rule and salary provisions retain the Governor's limited constitutional approval role.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

High Court benches and access: A High Court may have its principal seat and permanent or circuit benches under applicable reorganisation/statutory arrangements.

MUST-WRITE KEYWORDS

- High
- Court
- Article 229
- Chief
- Justice

How to use them: Frame the answer through High; define Court, connect Article 229 with Chief to explain the mechanism, and use Justice for the decisive comparison or qualification.

- [FACT] A High Court may have its principal seat and permanent or circuit benches under applicable reorganisation/statutory arrangements.
- [FACT] Article 229 places appointment of High Court officers and servants with the Chief Justice or authorised officer; service-rule and salary provisions retain the Governor's limited constitutional approval role.
- [FACT] High Court administrative expenses are charged on the Consolidated Fund of the State.
- [FACT] Article 230 lets Parliament extend or exclude a High Court's jurisdiction in relation to a Union Territory; Article 231 permits a common High Court.
- [ANALYSIS] Benches can reduce travel and regional exclusion but may fragment administration and generate seat-location politics.
- [LIMIT] Bench creation is not a unilateral power of the High Court alone; constitutional, executive and statutory processes apply.

CLOSING RECALL FLOW - HIGH COURT BENCHES AND ACCESS

START / CONCEPT: High Court benches and access
|
v
EXACT TERMS: High • Court • Article 229 • Chief • Justice
|
v
MECHANISM / ARGUMENT: High Court administrative expenses are charged on the Consolidated Fund of the State.
|
v
CONSEQUENCE / CONTRAST: Benches can reduce travel and regional exclusion but may fragment administration and generate seat-location politics.
|
v
UPSC TRAP / ANSWER-USE: A High Court cannot unilaterally create every permanent bench.
|
v
ANSWER-GRABBING FORMULATION: High Court benches and access: A High Court may have its principal seat and permanent or circuit benches under applicable reorganisation/statutory arrangements.

SESSION 20 - SUBORDINATE JUDICIARY: CONSTITUTIONAL ARCHITECTURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 236 defines both "district judge" and "judicial service"; the latter is a service intended to fill the post of district judge and civil judicial posts inferior to it.

Technical definition: Article 237 permits the Governor, by public notification, to apply this chapter to specified classes of magistrates, subject to stated exceptions or modifications.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Subordinate judiciary: constitutional architecture: Article 236 defines both "district judge" and "judicial service"; the latter is a service intended to fill the post of district judge and civil judicial posts inferior to it.

MUST-WRITE KEYWORDS

- **Articles 233-237**
- **district judges**
- **High Court control**
- **Governor**

How to use them: Frame the answer through Articles 233-237; define district judges, connect High Court control with Governor to explain the mechanism, and close with the decisive comparison or qualification.

Visual 23 - Articles 233-237

Article	Subject
233	appointment, posting and promotion of district judges
233A	validation of specified past appointments/judgments
234	recruitment below district judge
235	High Court control
236	interpretation, including broad "district judge" definition
237	application to certain magistrates

- [FACT] Article 236 defines both "district judge" and "judicial service"; the latter is a service intended to fill the post of district judge and civil judicial posts inferior to it.
- [FACT] Article 237 permits the Governor, by public notification, to apply this chapter to specified classes of magistrates, subject to stated exceptions or modifications.

Visual 24 - Independence chain

Governor appoints district judges
+
mandatory High Court consultation
|
High Court controls posting, promotion and leave
|
district judiciary insulated from ordinary executive command

CLOSING RECALL FLOW - SUBORDINATE JUDICIARY: CONSTITUTIONAL ARCHITECTURE

START / CONCEPT: Subordinate judiciary: constitutional architecture
|
v
EXACT TERMS: Articles 233-237 · district judges · High Court control · Governor
|
v
MECHANISM / ARGUMENT: Article 237 permits the Governor, by public notification, to apply this chapter to specified classes of magistrates, subject to stated exceptions or modifications.
|
v
CONSEQUENCE / CONTRAST: Distributed appointment and High Court control insulate trial justice from executive command.
|
v
UPSC TRAP / ANSWER-USE: Articles 233-237 distribute powers; they do not vest every function in one actor.
|
v
ANSWER-GRABBING FORMULATION: Subordinate judiciary: constitutional architecture: Article 236 defines both "district judge" and "judicial service"; the latter is a service intended to fill the post of district judge and civil judicial posts inferior to it.

SESSION 21 - APPOINTMENT OF DISTRICT JUDGES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 233 places appointment, posting and promotion of district judges with the Governor in consultation with the High Court.

Technical definition: A person not already in Union/State service requires at least seven years as advocate or pleader and High Court recommendation for district-judge appointment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Appointment of district judges: Article 233 places appointment, posting and promotion of district judges with the Governor in consultation with the High Court.

MUST-WRITE KEYWORDS

- Appointment
- Union
- High
- Court

How to use them: Frame the answer through Appointment; define Union, connect High with Court to explain the mechanism, and close with the decisive comparison or qualification.

- [FACT] Article 233 places appointment, posting and promotion of district judges with the Governor in consultation with the High Court.
- [FACT] A person not already in Union/State service requires at least seven years as advocate or pleader and High Court recommendation for district-judge appointment.
- [CURRENT] *Rejanish K.V. v. K. Deepa* (2025 INSC 1208) prospectively overruled *Dheeraj Mor*. Serving judicial officers may compete in direct recruitment when they satisfy the Court's combined seven-year advocate/judicial-service experience, minimum age of 35 and application-date conditions.
- [LIMIT] The *Rejanish* rule is a judicial interpretation governing recruitment eligibility; it does not rewrite the text of Article 233(2), and completed earlier selections retain the judgment's prospective protection.
- [LIMIT] The Governor does not appoint unilaterally, and the High Court does not formally appoint alone.
- [ANALYSIS] Consultation protects judicial independence while retaining constitutional State appointment form.

CLOSING RECALL FLOW - APPOINTMENT OF DISTRICT JUDGES

START / CONCEPT: Appointment of district judges

|

v

EXACT TERMS: Appointment • Union • High • Court

|

v

MECHANISM / ARGUMENT: *Rejanish K.V. v. K. Deepa* prospectively permits qualifying serving judicial officers to compete in direct District-Judge recruitment.

|

v

CONSEQUENCE / CONTRAST: Consultation protects judicial independence while retaining constitutional State appointment form.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: *dheeraj Mor*'s categorical serving-officer exclusion is no longer current.

|

v

ANSWER-GRABBING FORMULATION: Appointment of district judges: Article 233 places appointment, posting and promotion of district judges with the Governor in consultation with the High Court.

SESSION 22 - RECRUITMENT BELOW DISTRICT JUDGE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 234 governs persons other than district judges entering the State judicial service.

Technical definition: *All India Judges Association v. Union of India* prospectively requires three years of Bar practice for Civil Judge entry recruitment.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Recruitment below district judge: Article 234 governs persons other than district judges entering the State judicial service.

MUST-WRITE KEYWORDS

- Recruitment
- All

- India
- Judges
- Association

How to use them: Frame the answer through Recruitment; define All, connect India with Judges to explain the mechanism, and use Association for the decisive comparison or qualification.

Visual 25 - Article 234

Governor makes appointment

|

rules framed after consultation with:

- +-- State Public Service Commission
- +-- High Court

- [FACT] Article 234 governs persons other than district judges entering the State judicial service.
- [CURRENT] *All India Judges Association v. Union of India* (20 May 2025) restored a minimum three-year Bar-practice requirement prospectively for future Civil Judge (Junior Division) recruitments.
- [CURRENT] The same decision restored a 25% Limited Departmental Competitive Examination channel for District-Judge promotion, recalibrated experience conditions and required a suitability test in the merit-cum-seniority stream.
- [ANALYSIS] The tripartite design combines recruitment machinery, constitutional appointment and judicial quality control.
- [LIMIT] Exact examinations, cadres and service rules vary by State.

CLOSING RECALL FLOW - RECRUITMENT BELOW DISTRICT JUDGE

START / CONCEPT: Recruitment below district judge

|

v

EXACT TERMS: Recruitment • All • India • Judges • Association

|

v

MECHANISM / ARGUMENT: The same decision restored a 25% Limited Departmental Competitive Examination channel for District-Judge promotion, recalibrated experience conditions and required a suitability test in the merit-cum-seniority stream.

|

v

CONSEQUENCE / CONTRAST: The tripartite design combines recruitment machinery, constitutional appointment and judicial quality control.

|

v

UPSC TRAP / ANSWER-USE: The three-year Bar rule is case law, not Article 234 text.

|

v

ANSWER-GRABBING FORMULATION: Recruitment below district judge: Article 234 governs persons other than district judges entering the State judicial service.

SESSION 23 - ARTICLE 235 CONTROL

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 235 vests control over district courts and subordinate courts in the High Court.

Technical definition: *State of West Bengal v. Nripendra Nath Bagchi* confirms that Article 235 control includes disciplinary control.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 235 control: Article 235 vests control over district courts and subordinate courts in the High Court.

MUST-WRITE KEYWORDS

- Article 235
- disciplinary control

- High Court
- subordinate judiciary

How to use them: Frame the answer through Article 235; define disciplinary control, connect High Court with subordinate judiciary to explain the mechanism, and close with the decisive comparison or qualification.

Visual 26 - What "control" protects

```
HIGH COURT CONTROL
+-- posting
+-- promotion
+-- leave
+-- disciplinary supervision within law
  |
  v
lower-court decisional independence
```

- [FACT] Article 235 vests control over district courts and subordinate courts in the High Court.
- [FACT] *State of West Bengal v. Nripendra Nath Bagchi* (1966) reads "control" to include disciplinary control; it is not confined to routine posting and promotion.
- [ANALYSIS] Independence would be hollow if the executive could transfer or discipline trial judges whose decisions affect the State.
- [LIMIT] Service conditions and appeal rights remain subject to law; High Court control is constitutional administration, not arbitrary power.

CLOSING RECALL FLOW - ARTICLE 235 CONTROL

```
START / CONCEPT: Article 235 control
  |
  v
EXACT TERMS: Article 235 · disciplinary control · High Court · subordinate judiciary
  |
  v
MECHANISM / ARGUMENT: Independence would be hollow if the executive could transfer or discipline
trial judges whose decisions affect the State.
  |
  v
CONSEQUENCE / CONTRAST: High Court control shields subordinate judges from direct executive career
pressure.
  |
  v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: high Court control remains subject
to law and natural justice.
  |
  v
ANSWER-GRABBING FORMULATION: Article 235 control: Article 235 vests control over district courts
and subordinate courts in the High Court.
```

SESSION 24 - DISTRICT-COURT HIERARCHY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: District Judge and Sessions Judge describe the same judicial officer acting on civil and criminal sides.

Technical definition: Article 236 defines "district judge" broadly to include multiple equivalent designations.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

District-court hierarchy: District Judge and Sessions Judge describe the same judicial officer acting on civil and criminal sides.

MUST-WRITE KEYWORDS

- Article 236
- district court

- civil courts
- criminal courts

How to use them: Frame the answer through Article 236; define district court, connect civil courts with criminal courts to explain the mechanism, and close with the decisive comparison or qualification.

Visual 27 - Civil and criminal sides

Level	Civil side	Criminal side
District apex	District Judge	Sessions Judge
Middle	Civil Judge, Senior Division	Chief Judicial Magistrate
Entry/lower	Civil Judge, Junior Division / Munsiff	Judicial Magistrate

- [FACT] District Judge and Sessions Judge describe the same judicial officer acting on civil and criminal sides.
- [FACT] Article 236 defines "district judge" broadly to include multiple equivalent designations.
- [LIMIT] Court names and exact pecuniary/criminal jurisdiction vary under State law and current procedural statutes.

CLOSING RECALL FLOW - DISTRICT-COURT HIERARCHY

START / CONCEPT: District-court hierarchy

|

v

EXACT TERMS: Article 236 · district court · civil courts · criminal courts

|

v

MECHANISM / ARGUMENT: Court names and exact pecuniary/criminal jurisdiction vary under State law and current procedural statutes.

|

v

CONSEQUENCE / CONTRAST: Graded forums combine accessible trials with structured correction and confirmation.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: court names and pecuniary powers vary by State law.

|

v

ANSWER-GRABBING FORMULATION: District-court hierarchy: District Judge and Sessions Judge describe the same judicial officer acting on civil and criminal sides.

SESSION 25 - ADMINISTRATIVE AND JUDICIAL RESPONSIBILITIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: High Court overload is multidimensional: constitutional cases, ordinary appeals and administrative control compete for judicial time.

Technical definition: Reform must therefore combine judge strength, registry modernisation, lower-court capacity and case-flow management.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Administrative and judicial responsibilities: High Court overload is multidimensional: constitutional cases, ordinary appeals and administrative control compete for judicial time.

MUST-WRITE KEYWORDS

- Article 235
- disciplinary control
- case management
- judicial administration

How to use them: Frame the answer through Article 235; define disciplinary control, connect case management with judicial administration to explain the mechanism, and close with the decisive comparison or qualification.

Visual 28 - High Court as head of State judiciary

Constitutional adjudication
+
appeals and revisions
+
Article 227 supervision
+
Article 235 administration
=
rights court + system manager

- [ANALYSIS] High Court overload is multidimensional: constitutional cases, ordinary appeals and administrative control compete for judicial time.
- [ANALYSIS] Reform must therefore combine judge strength, registry modernisation, lower-court capacity and case-flow management.

CLOSING RECALL FLOW - ADMINISTRATIVE AND JUDICIAL RESPONSIBILITIES

START / CONCEPT: Administrative and judicial responsibilities
|
v
EXACT TERMS: Article 235 · disciplinary control · case management · judicial administration
|
v
MECHANISM / ARGUMENT: Reform must therefore combine judge strength, registry modernisation, lower-court capacity and case-flow management.
|
v
CONSEQUENCE / CONTRAST: The resulting consequence is that constitutional cases, ordinary appeals and administrative control compete for judicial time.
|
v
UPSC TRAP / ANSWER-USE: Professional management cannot transfer decisional control to the executive.
|
v
ANSWER-GRABBING FORMULATION: Administrative and judicial responsibilities: High Court overload is multidimensional: constitutional cases, ordinary appeals and administrative control compete for judicial time.

SESSION 26 - LEGAL AID UNDER ARTICLE 39A

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 39A directs equal justice and free legal aid.

Technical definition: The Legal Services Authorities Act, 1987 creates the institutional framework.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legal aid under Article 39A: Article 39A directs equal justice and free legal aid.

MUST-WRITE KEYWORDS

- Legal
- Article 39A
- Services
- Authorities

How to use them: Frame the answer through Legal; define Article 39A, connect Services with Authorities to explain the mechanism, and close with the decisive comparison or qualification.

Visual 29 - Access ladder

NALSA
|
State Legal Services Authorities
|
District Legal Services Authorities
|
Taluk Legal Services Committees
|
legal aid / Lok Adalats / awareness

- [FACT] Article 39A directs equal justice and free legal aid.
- [FACT] The Legal Services Authorities Act, 1987 creates the institutional framework.
- [FACT] NALSA, SLSAs, DLSAs and Taluk committees support eligible persons and organise Lok Adalats.
- [ANALYSIS] Formal judicial independence does not equal access if cost, distance, language and legal representation exclude citizens.

CLOSING RECALL FLOW - LEGAL AID UNDER ARTICLE 39A

START / CONCEPT: Legal aid under Article 39A
|
v
EXACT TERMS: Legal · Article 39A · Services · Authorities
|
v
MECHANISM / ARGUMENT: NALSA, SLSAs, DLSAs and Taluk committees support eligible persons and organise Lok Adalats.
|
v
CONSEQUENCE / CONTRAST: Formal judicial independence does not equal access if cost, distance, language and legal representation exclude citizens.
|
v
UPSC TRAP / ANSWER-USE: Do not quote one obsolete income ceiling as a nationwide constant.
|
v
ANSWER-GRABBING FORMULATION: Legal aid under Article 39A: Article 39A directs equal justice and free legal aid.

SESSION 27 - LOK ADALATS AND PERMANENT LOK ADALATS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Ordinary Lok Adalats do not adjudicate a contested dispute on merits when settlement fails.

Technical definition: Non-compoundable criminal offences cannot be settled through Lok Adalat.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Lok Adalats and Permanent Lok Adalats: Ordinary Lok Adalats do not adjudicate a contested dispute on merits when settlement fails.

MUST-WRITE KEYWORDS

- Lok
- Adalats
- Permanent
- Non
- Adalat

How to use them: Frame the answer through Lok; define Adalats, connect Permanent with Non to explain the mechanism, and use Adalat for the decisive comparison or qualification.

Visual 30 - Core distinction

Feature	Lok Adalat	Permanent Lok Adalat
Main model	compromise/settlement	pre-litigation public-utility dispute mechanism
Consent	settlement ordinarily rests on compromise	may decide merits after conciliation fails within statutory field
Criminal scope	compoundable offences only	statutory public-utility scope; not general criminal trial
Award	final and binding; decree-like	final and binding within statute

- [FACT] Ordinary Lok Adalats do not adjudicate a contested dispute on merits when settlement fails.
- [FACT] Non-compoundable criminal offences cannot be settled through Lok Adalat.
- [LIMIT] Lok Adalats reduce suitable disputes; they are not substitutes for constitutional courts or ordinary criminal justice.

CLOSING RECALL FLOW - LOK ADALATS AND PERMANENT LOK ADALATS

START / CONCEPT: Lok Adalats and Permanent Lok Adalats

|

v

EXACT TERMS: Lok • Adalats • Permanent • Non • Adalat

|

v

MECHANISM / ARGUMENT: Lok Adalats reduce suitable disputes; they are not substitutes for constitutional courts or ordinary criminal justice.

|

v

CONSEQUENCE / CONTRAST: Correct classification protects consent while preserving the limited public-utility exception.

|

v

UPSC TRAP / ANSWER-USE: Ordinary Lok Adalats cannot decide a contested dispute on merits.

|

v

ANSWER-GRABBING FORMULATION: Lok Adalats and Permanent Lok Adalats: Ordinary Lok Adalats do not adjudicate a contested dispute on merits when settlement fails.

SESSION 28 - LOK ADALAT VERSUS ARBITRATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: A Permanent Lok Adalat's statutory merits power must not be confused with an ordinary Lok Adalat.

Technical definition: Lok Adalat rests on statutory conciliation and settlement, whereas arbitration produces an adjudicatory award under arbitration law.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Lok Adalat versus arbitration: A Permanent Lok Adalat's statutory merits power must not be confused with an ordinary Lok Adalat.

MUST-WRITE KEYWORDS

- Lok Adalat
- Permanent Lok Adalat
- arbitration tribunal
- Legal Services Authorities Act

How to use them: Frame the answer through Lok Adalat; define Permanent Lok Adalat, connect arbitration tribunal with Legal Services Authorities Act to explain the mechanism, and close with the decisive comparison or qualification.

Visual 31 - 2024 PYQ matrix

Axis	Lok Adalat	Arbitration tribunal
Source	Legal Services Authorities Act	Arbitration agreement and Arbitration Act
Nature	conciliation/settlement forum	private adjudication
Basis	statutory legal-aid/access mechanism	party consent to arbitrate
Criminal matters	compoundable criminal settlement possible	criminal prosecution not arbitrable
Result	settlement award, decree-like	arbitral award, challenge under statute

- [LIMIT] A Permanent Lok Adalat's statutory merits power must not be confused with an ordinary Lok Adalat.

CLOSING RECALL FLOW - LOK ADALAT VERSUS ARBITRATION

START / CONCEPT: Lok Adalat versus arbitration

|
v

EXACT TERMS: Lok Adalat • Permanent Lok Adalat • arbitration tribunal • Legal Services Authorities Act

|
v

MECHANISM / ARGUMENT: Ordinary Lok Adalat depends on settlement; arbitration culminates in an adjudicatory award.

|
v

CONSEQUENCE / CONTRAST: The comparison separates access-oriented settlement from party-chosen adjudication.

|
v

UPSC TRAP / ANSWER-USE: Permanent Lok Adalat is not the model for every Lok Adalat.

|
v

ANSWER-GRABBING FORMULATION: Lok Adalat versus arbitration: A Permanent Lok Adalat's statutory merits power must not be confused with an ordinary Lok Adalat.

SESSION 29 - FAMILY COURTS AND GRAM NYAYALAYAS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Decentralised forums address distance and procedure, but underfunding and weak notification can limit actual reach.

Technical definition: Family Courts specialise procedure for family disputes, while notified Gram Nyayalayas are mobile grassroots courts under a separate statute.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Family Courts and Gram Nyayalayas: Decentralised forums address distance and procedure, but underfunding and weak notification can limit actual reach.

MUST-WRITE KEYWORDS

- Family
- Courts
- Gram
- Nyayalayas
- Decentralised

How to use them: Frame the answer through Family; define Courts, connect Gram with Nyayalayas to explain the mechanism, and use Decentralised for the decisive comparison or qualification.

Visual 32 - Special access forums

Institution	Core purpose	Key caution
Family Court	conciliation-focused family disputes	not a general village criminal court
Gram Nyayalaya	mobile/local access for specified civil and criminal matters	implementation is uneven
Lok Adalat	consensual settlement	no non-compoundable offences

- [ANALYSIS] Decentralised forums address distance and procedure, but underfunding and weak notification can limit actual reach.

CLOSING RECALL FLOW - FAMILY COURTS AND GRAM NYAYALAYAS

START / CONCEPT: Family Courts and Gram Nyayalayas

|

v

EXACT TERMS: Family • Courts • Gram • Nyayalayas • Decentralised

|

v

MECHANISM / ARGUMENT: Decentralised forums address distance and procedure, but underfunding and weak notification can limit actual reach.

|

v

CONSEQUENCE / CONTRAST: The resulting consequence is that decentralised forums address distance and procedure.

|

v

UPSC TRAP / ANSWER-USE: Gram Nyayalayas are not uniformly operational across India.

|

v

ANSWER-GRABBING FORMULATION: Family Courts and Gram Nyayalayas: Decentralised forums address distance and procedure, but underfunding and weak notification can limit actual reach.

SESSION 30 - ALL INDIA JUDICIAL SERVICE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: No AIJS is operational as of 5 September 2026.

Technical definition: AIJS cannot constitutionally recruit posts below district judge.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

All India Judicial Service: No AIJS is operational as of 5 September 2026.

MUST-WRITE KEYWORDS

- All
- India
- Judicial
- Service
- AIJS

How to use them: Frame the answer through All; define India, connect Judicial with Service to explain the mechanism, and use AIJS for the decisive comparison or qualification.

Visual 33 - Constitutional route

Rajya Sabha resolution under Article 312
by at least two-thirds present and voting
|
Parliament creates service by law
|
AIJS may include district-judge level
|
cannot include posts below district judge: Article 312(3)

Visual 34 - AIJS debate

Case for	Case against
common merit standards	State language and local-law needs
coordinated recruitment calendar	federal recruitment autonomy
wider talent pool and diversity	possible weakening of Articles 233-235
vacancy reduction	central exam alone cannot fix retention/infrastructure
national training standards	High Court control must remain meaningful

- [CURRENT] No AIJS is operational as of 5 September 2026.
- [LIMIT] AIJS cannot constitutionally recruit posts below district judge.
- [ANALYSIS] A workable model must preserve Article 235 control, State language competence, reservations, local law training and High Court participation.

CLOSING RECALL FLOW - ALL INDIA JUDICIAL SERVICE

START / CONCEPT: All India Judicial Service
|
v
EXACT TERMS: All • India • Judicial • Service • AIJS
|
v
MECHANISM / ARGUMENT: A workable model must preserve Article 235 control, State language competence, reservations, local law training and High Court participation.
|
v
CONSEQUENCE / CONTRAST: Any AIJS design must preserve local competence, reservations and High Court control.
|
v
UPSC TRAP / ANSWER-USE: AIJS is absent and cannot include posts below district judge.
|
v
ANSWER-GRABBING FORMULATION: All India Judicial Service: No AIJS is operational as of 5 September 2026.

SESSION 31 - VACANCY AND PENDENCY PROBLEM

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Department of Justice statement dated 1 July 2026 records 1,122 sanctioned High Court posts, 781 working judges and 341 vacancies.

Technical definition: Pendency is produced by incoming case volume, vacancies, procedural complexity, government litigation, adjournments, weak service of process and uneven technology.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Vacancy and pendency problem: The Department of Justice statement dated 1 July 2026 records 1,122 sanctioned High Court posts, 781 working judges and 341 vacancies.

MUST-WRITE KEYWORDS

- judicial vacancies

- case pendency
- sanctioned strength
- court capacity

How to use them: Frame the answer through judicial vacancies; define case pendency, connect sanctioned strength with court capacity to explain the mechanism, and close with the decisive comparison or qualification.

Visual 35 - Capacity spiral

```

vacancies + weak staff/infrastructure
      |
      v
adjournment and backlog
      |
      v
slower enforcement and appeals
      |
      v
lower trust / higher litigation cost
      |
      v
more pressure for exceptional forums
  
```

- [CURRENT] The Department of Justice statement dated **1 July 2026** records **1,122 sanctioned High Court posts, 781 working judges and 341 vacancies**. The 30.4% vacancy share is a dated calculation, not a permanent characteristic.
- [ANALYSIS] Pendency is produced by incoming case volume, vacancies, procedural complexity, government litigation, adjournments, weak service of process and uneven technology.
- [LIMIT] No single reform - AIJS, more judges, tribunals or mediation - can solve all components.

CLOSING RECALL FLOW - VACANCY AND PENDENCY PROBLEM

```

START / CONCEPT: Vacancy and pendency problem
      |
      v
EXACT TERMS: judicial vacancies • case pendency • sanctioned strength • court capacity
      |
      v
MECHANISM / ARGUMENT: No single reform - AIJS, more judges, tribunals or mediation - can solve all
components.
      |
      v
CONSEQUENCE / CONTRAST: Pendency is produced by incoming case volume, vacancies, procedural
complexity, government litigation, adjournments, weak service of process and uneven technology.
      |
      v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: every vacancy or pendency figure
needs a source date.
      |
      v
ANSWER-GRABBING FORMULATION: Vacancy and pendency problem: The Department of Justice statement
dated 1 July 2026 records 1,122 sanctioned High Court posts, 781 working judges and 341 vacancies.
  
```

SESSION 32 - ECOURTS PHASE III

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Phase III covers 2023-2027 with an official outlay of Rs 7,210 crore.

Technical definition: Its objectives include digitised records, paperless courts, universal digital filing/payment capacity and data-enabled management.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

eCourts Phase III: Phase III covers 2023-2027 with an official outlay of Rs 7,210 crore.

MUST-WRITE KEYWORDS

- Courts
- Phase
- III
- Its

How to use them: Frame the answer through Courts; define Phase, connect III with Its to explain the mechanism, and close with the decisive comparison or qualification.

Visual 36 - Digital justice stack

record digitisation
+ e-filing and e-payment
+ virtual / hybrid access
+ e-Sewa Kendras
+ interoperable data
+ intelligent case management
|
v
faster, traceable and more accessible process

- [CURRENT] Phase III covers 2023-2027 with an official outlay of Rs 7,210 crore.
- [CURRENT] Its objectives include digitised records, paperless courts, universal digital filing/payment capacity and data-enabled management.
- [ANALYSIS] Technology can reduce filing friction, missing records and travel costs.
- [LIMIT] Digital exclusion, cyber security, privacy, poor connectivity, language barriers and algorithmic opacity require safeguards.

CLOSING RECALL FLOW - ECOURTS PHASE III

START / CONCEPT: eCourts Phase III
|
v
EXACT TERMS: Courts · Phase · III · Its
|
v
MECHANISM / ARGUMENT: Technology can reduce filing friction, missing records and travel costs.
|
v
CONSEQUENCE / CONTRAST: The resulting consequence is that technology can reduce filing friction, missing records and travel costs.
|
v
UPSC TRAP / ANSWER-USE: Digital-by-default court reform cannot become digital-only justice that excludes vulnerable litigants.
|
v
ANSWER-GRABBING FORMULATION: eCourts Phase III: Phase III covers 2023-2027 with an official outlay of Rs 7,210 crore.

SESSION 33 - NATIONAL JUDICIAL DATA GRID AND DATA GOVERNANCE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The National Judicial Data Grid aggregates case-status and pendency data, making court administration and data governance more transparent.

Technical definition: Better data can identify age-wise backlog, bottlenecks and judge-court workload.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

National Judicial Data Grid and data governance: Digital court systems aggregate case-status and pendency information for administration and public access.

MUST-WRITE KEYWORDS

- National
- Judicial
- Data
- Grid
- Better

How to use them: Frame the answer through National; define Judicial, connect Data with Grid to explain the mechanism, and use Better for the decisive comparison or qualification.

- [FACT] Digital court systems aggregate case-status and pendency information for administration and public access.
- [ANALYSIS] Better data can identify age-wise backlog, bottlenecks and judge-court workload.
- [LIMIT] Administrative indicators must not become crude performance quotas that pressure adjudicative independence or reward hurried disposal.

CLOSING RECALL FLOW - NATIONAL JUDICIAL DATA GRID AND DATA GOVERNANCE

START / CONCEPT: National Judicial Data Grid and data governance

|
v

EXACT TERMS: National · Judicial · Data · Grid · Better

|
v

MECHANISM / ARGUMENT: Administrative indicators must not become crude performance quotas that pressure adjudicative independence or reward hurried disposal.

|
v

CONSEQUENCE / CONTRAST: Better data can identify age-wise backlog, bottlenecks and judge-court workload.

|
v

UPSC TRAP / ANSWER-USE: Disposal counts alone do not measure justice quality.

|
v

ANSWER-GRABBING FORMULATION: National Judicial Data Grid and data governance: Digital court systems aggregate case-status and pendency information for administration and public access.

SESSION 34 - GOVERNMENT LITIGATION AND CASE MANAGEMENT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Government litigation is a major part of court dockets, so disciplined case management affects delay and public expenditure.

Technical definition: Case-management reform requires litigation policy, responsible departmental decisions, realistic scheduling and limits on avoidable adjournments.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Government litigation and case management: Government litigation and case management has a defined constitutional role.

MUST-WRITE KEYWORDS

- government litigation
- case management
- adjournments
- institutional reform

How to use them: Frame the answer through government litigation; define case management, connect adjournments with institutional reform to explain the mechanism, and close with the decisive comparison or qualification.

Visual 37 - Reform sequence

Problem	Targeted response
repetitive government appeals	accountable litigation policy
summons/service delay	reliable digital and physical service
adjournment culture	reasoned limits and realistic calendars
old cases	age-based docket management
vacancies	predictable recommendation/recruitment pipeline
weak staff	registry and process-server capacity
access barriers	legal aid, e-Sewa Kendras and local language

CLOSING RECALL FLOW - GOVERNMENT LITIGATION AND CASE MANAGEMENT

START / CONCEPT: Government litigation and case management

|

v

EXACT TERMS: government litigation • case management • adjournments • institutional reform

|

v

MECHANISM / ARGUMENT: The operative mechanism is that government litigation and case management has a defined constitutional role.

|

v

CONSEQUENCE / CONTRAST: Assigning each delay source to its responsible institution makes reform executable.

|

v

UPSC TRAP / ANSWER-USE: More judges alone cannot cure repetitive government appeals.

|

v

ANSWER-GRABBING FORMULATION: Government litigation and case management: Government litigation and case management has a defined constitutional role.

SESSION 35 - JUDICIAL INDEPENDENCE AND ACCOUNTABILITY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Independence without accountability risks opacity; accountability without independence risks political control; both without capacity produce delayed justice.

Technical definition: Pendency alone does not prove judicial misconduct, and speed alone is not justice.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Judicial independence and accountability: Independence without accountability risks opacity; accountability without independence risks political control; both without capacity produce delayed justice.

MUST-WRITE KEYWORDS

- judicial independence
- accountability
- appointments
- discipline

How to use them: Frame the answer through judicial independence; define accountability, connect appointments with discipline to explain the mechanism, and close with the decisive comparison or qualification.

Visual 38 - Balance

INDEPENDENCE

tenure, appointments, transfer safeguards,
Article 235 control, review power

ACCOUNTABILITY

reasoned judgments, appeal/review,
ethics, transparent administration,
removal for proved misconduct

CAPACITY

judges, staff, buildings, technology,
legal aid and case management

- [ANALYSIS] Independence without accountability risks opacity; accountability without independence risks political control; both without capacity produce delayed justice.
- [LIMIT] Pendency alone does not prove judicial misconduct, and speed alone is not justice.

CLOSING RECALL FLOW - JUDICIAL INDEPENDENCE AND ACCOUNTABILITY

START / CONCEPT: Judicial independence and accountability

|

v

EXACT TERMS: judicial independence · accountability · appointments · discipline

|

v

MECHANISM / ARGUMENT: Pendency alone does not prove judicial misconduct, and speed alone is not justice.

|

v

CONSEQUENCE / CONTRAST: Independence without accountability risks opacity; accountability without independence risks political control; both without capacity produce delayed justice.

|

v

UPSC TRAP / ANSWER-USE: Opacity is not a necessary synonym for independence.

|

v

ANSWER-GRABBING FORMULATION: Judicial independence and accountability: Independence without accountability risks opacity; accountability without independence risks political control; both without capacity produce delayed justice.

SESSION 36 - ARTICLES 214-237 RAPID MAP

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 226 covers Fundamental Rights and other legal purposes.

Technical definition: Article 32 directly enforces Fundamental Rights.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 214-237 rapid map: Article 226 covers Fundamental Rights and other legal purposes.

MUST-WRITE KEYWORDS

- Articles 214
- Article 32
- Fundamental
- Rights

How to use them: Frame the answer through Articles 214; define Article 32, connect Fundamental with Rights to explain the mechanism, and close with the decisive comparison or qualification.

Article	Recall
214	High Court for each State
215	court of record and contempt
216	constitution of High Court
217	appointment and conditions
218	specified SC provisions applied
219	oath
220	post-retirement practice restriction
221	salaries
222	transfer
223	acting Chief Justice
224	additional and acting judges
224A	retired judges sitting
225	existing jurisdiction
226	writ jurisdiction
227	superintendence
228	constitutional case withdrawal
229	officers, servants and expenses
230	extension/exclusion of jurisdiction over UTs
231	common High Court
233	district judges
233A	validation provision
234	recruitment below district judge
235	High Court control
236	interpretation
237	application to magistrates

CLOSING RECALL FLOW - ARTICLES 214-237 RAPID MAP

START / CONCEPT: Articles 214-237 rapid map
|
v
EXACT TERMS: Articles 214 • Article 32 • Fundamental • Rights
|
v
MECHANISM / ARGUMENT: Supreme Court appellate/review authority does not erase High Court constitutional jurisdiction.
|
v
CONSEQUENCE / CONTRAST: Explanation: Technology is an enabler, not adjudication itself.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 232 is absent because it was repealed.
|
v
ANSWER-GRABBING FORMULATION: Articles 214-237 rapid map: Article 226 covers Fundamental Rights and other legal purposes.

POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL

- **Must remember:** Audit Articles 214-237 as separate constitutional controls: High Court existence/common courts, judge appointment and service, jurisdiction, writs, superintendence, court administration and subordinate-judiciary recruitment/control must not be collapsed into one judicial-independence claim.
- **Close distinction:** Keep Articles 226, 227 and 235 distinct. Article 226 reaches Fundamental Rights and other legal rights; Article 227 is supervisory rather than an ordinary appeal; Article 235 gives the High Court administrative control over the district and subordinate judiciary.
- **Legal/source limit:** India has 25 High Courts. The 1 July 2026 DoJ snapshot is 1,122 sanctioned, 781 working and 341 vacant. Rejanish K.V. (2025 INSC 1208) prospectively replaced the categorical Dheeraj Mor exclusion; AIJS remains uncreated.

Semantic-completeness ownership and PYQ control

- **Constitutional map:** Articles 214-237 divide into Articles 214-231 governing

High Courts and Articles 233-237 governing govern the subordinate judiciary. Article 214 does not produce one court for every State because Article 231 permits Parliament to establish a common High Court for two or more States or for States and Union Territories.

- **Judges and independence:** Article 217 separates appointment, qualification, tenure and consultation; Article 218 applies specified Supreme Court safeguards; Articles 219-224A cover oath, practice, salaries, transfer, acting/additional judges and retired judges. High Court judges retire at sixty-two.

- **Jurisdiction firewall:** Article 225 preserves inherited jurisdiction subject to the Constitution and law. Article 226 authorises writs for Fundamental Rights and any other purpose, subject to territorial cause-of-action rules; Article 227 is superintendence, not a substitute statutory appeal. Article 215 makes each High Court a court of record with contempt power.

- **Review doctrine:** L. Chandra Kumar (1997) preserves Articles 226/227 review over tribunal decisions as part of the Basic Structure. Whirlpool (1998) states the recognised alternative-remedy exceptions. Radhey Shyam (2015) keeps judicial orders of civil courts outside Article 226 while Article 227 supervision remains available within its limits.

- **Subordinate recruitment:** Article 233 places appointment, posting and promotion of district judges with the Governor in consultation with the High Court; Article 234 governs recruitment below district judge through Governor-made rules after State PSC and High Court consultation. Articles 236-237 define the chapter's reach.

- **Current Article 233 rule:** Rejanish K.V. v. K. Deepa, 2025 INSC 1208, prospectively overruled Dheeraj Mor's categorical exclusion. Qualifying serving judicial officers may compete in direct District-Judge recruitment under the combined-experience, minimum-age and application-date conditions stated by

the Court.

- **Control and separation:** Article 235 vests control over district and subordinate courts in the High Court; Article 50 directs separation of the judiciary from the executive. State executive participation in appointment does not permit control over judicial careers or adjudication.
- **AIJS boundary:** Article 312 permits an All India Judicial Service only after the Rajya Sabha's two-thirds present-and-voting resolution and parliamentary law; Article 312(3) excludes posts below district judge. No AIJS exists as of 5 September 2026.
- **Current capacity control:** India has twenty-five High Courts. The Department of Justice snapshot dated 1 July 2026 records 1,122 sanctioned posts, 781 working judges and 341 vacancies; working strength, vacancy and pendency are dynamic and must retain their date.
- **Four-ledger/PYQ control:** direct and routed 2018-2025 High Court, tribunal, Lok Adalat, collegium and subordinate-judiciary demands were retained without fabricating a direct route. Topic 18 owns Supreme Court detail; Topic 54 owns full Lok Adalat and other-court architecture.

BASIC MCQS / REMEDIATION

Original MCQ loop - strict A -> B -> C -> D rotation

OM1. Number of High Courts

India currently has:

A. 25 High Courts, some common to multiple States/UTs. B. 28 High Courts. C. one High Court for every State and UT. D. one High Court for each judicial district.

Answer: A.

Explanation: [CURRENT] Article 231 permits common High Courts.

OM2. Court of record

Which Article makes every High Court a court of record?

A. 226. B. 215. C. 216. D. 214.

Answer: B.

Explanation: [FACT] Article 215 includes contempt power.

OM3. Appointment

High Court judges are formally appointed by:

A. Governor. B. CJI. C. President. D. Chief Minister.

Answer: C.

Explanation: [FACT] Article 217 provides presidential appointment.

OM4. Qualification

Consider the following routes for appointment as a High Court judge:

1. Ten years in a judicial office in India.
2. Ten years as an advocate of one or more High Courts in succession.
3. Recognition as a distinguished jurist by the President.

Which are constitutional qualification routes?

A. 2 and 3 only. B. 1, 2 and 3. C. 1 only. D. 1 and 2 only.

Answer: D.

Explanation: [FACT] Article 217 includes citizenship plus routes 1 or 2; distinguished jurist is confined to Supreme Court eligibility.

OM5. Retirement

A High Court judge ordinarily retires at:

A. 62. B. 60. C. 65. D. 68.

Answer: A.

Explanation: [FACT] Supreme Court retirement is 65.

OM6. Oath

High Court judge oath is before:

A. President only. B. Governor or authorised person. C. State Speaker. D. CJI.

Answer: B.

Explanation: [FACT] Article 219 controls.

OM7. Transfer

Consider the following statements on Article 222 transfer:

1. The President formally transfers a High Court judge after consulting the CJI.
2. The judge's consent is an express constitutional prerequisite.
3. Current procedure uses consultation with four senior-most Supreme Court judges and both affected Chief Justices.

Which are correct?

A. 2 and 3 only. B. 1, 2 and 3. C. 1 and 3 only. D. 1 only.

Answer: C.

Explanation: [FACT] Consent is not constitutionally required, but full institutional consultation and public interest constrain transfer.

OM8. Acting Chief Justice

The relevant provision is:

A. Article 225. B. Article 224A. C. Article 231. D. Article 223.

Answer: D.

Explanation: [FACT] Article 223 covers Acting Chief Justice.

OM9. Writ scope

Article 226 permits writs for:

A. Fundamental Rights and other legal purposes. B. criminal appeals only. C. Union disputes only. D. Fundamental Rights only.

Answer: A.

Explanation: [FACT] This makes Article 226 wider in purpose than Article 32.

OM10. Territorial cause of action

Consider the following statements under Article 226:

1. A High Court may act where the cause of action arises wholly or partly within its territory even if the respondent is located outside.
2. A qualifying application to vacate an ex parte interim order triggers Article 226(3)'s two-week disposal safeguard.
3. The petitioner's residence alone creates territorial jurisdiction.

Which are correct?

A. 1 only. B. 1 and 2 only. C. 1, 2 and 3. D. 2 and 3 only.

Answer: B.

Explanation: [FACT] Cause of action, not residence alone, supplies the territorial connection; clause (3) protects the unheard party against prolonged ex parte restraint.

OM11. Detention

The writ testing unlawful detention is:

A. certiorari. B. quo warranto. C. habeas corpus. D. mandamus.

Answer: C.

Explanation: [FACT] It may run against public or private detention.

OM12. Public office

The writ challenging unlawful occupation of public office is:

A. habeas corpus. B. prohibition. C. mandamus. D. quo warranto.

Answer: D.

Explanation: [FACT] It tests authority to hold public office.

OM13. Mandamus

Mandamus ordinarily:

A. commands performance of a public/legal duty. B. quashes a completed order. C. stops illegal detention. D. transfers a judge.

Answer: A.

Explanation: [FACT] A legal duty must exist.

OM14. Prohibition

Prohibition generally:

A. awards compensation. B. stops a lower forum before completion for jurisdictional error. C. removes a public officer. D. reviews a completed conviction on merits.

Answer: B.

Explanation: [FACT] Certiorari ordinarily quashes after the order.

OM15. Certiorari

Certiorari commonly:

A. commands legislation. B. appoints a tribunal. C. quashes a jurisdictionally defective completed order. D. releases every prisoner.

Answer: C.

Explanation: [FACT] It is corrective rather than preventive.

OM16. Alternative remedy

A statute provides an appeal, but the challenged order was passed without jurisdiction and without hearing the affected person. The best statement is:

A. Only Article 32 can be used. B. Article 226 jurisdiction is constitutionally extinguished. C. The High Court must decide the statutory appeal itself. D. The High Court may still exercise writ discretion despite the alternative remedy.

Answer: D.

Explanation: [FACT] Alternative remedy is self-restraint, with recognised exceptions including want of jurisdiction and natural-justice failure.

OM17. Basic Structure

Which formulation most accurately states *L. Chandra Kumar (1997)*?

A. Articles 226/227 and 32 review are Basic Structure; Articles 323A/323B tribunal decisions remain subject to High Court scrutiny. B. Parliament may exclude all High Court review by ordinary law. C. Every tribunal was abolished. D. High Courts became routine merits-appellate forums over tribunals.

Answer: A.

Explanation: [FACT] Tribunals supplement adjudication; they cannot wholly substitute the constitutional review layer.

OM18. Superintendence

Article 227 concerns:

A. presidential election. B. High Court superintendence over territorial courts and tribunals. C. State finance. D. judicial appointments only.

Answer: B.

Explanation: [FACT] Armed-Forces-law forums are excluded.

OM19. Constitutional withdrawal

Article 228 permits withdrawal where a case involves:

A. any factual dispute. B. a minor procedural error. C. a substantial constitutional-interpretation question. D. a political disagreement.

Answer: C.

Explanation: [FACT] High Court may decide the question or whole case.

OM20. Common High Court

Common High Courts are authorised by:

A. Article 235. B. Article 226. C. Article 214 alone. D. Article 231.

Answer: D.

Explanation: [FACT] Article 231 accommodates multi-jurisdiction courts.

OM21. District judge appointment

After *Rejanish K.V. v. K. Deepa* (2025), which statement is correct for direct District-Judge recruitment?

A. Qualifying serving judicial officers may compete prospectively under the Court's combined-experience, age and application-date rules. B. Article 233 permits recruitment to posts below district judge through AIJS. C. *Dheeraj Mor* continues to exclude every serving judicial officer. D. The State PSC appoints district judges without High Court consultation.

Answer: A.

Explanation: [CURRENT] *Rejanish* prospectively overruled the categorical *Dheeraj Mor* exclusion while preserving Governor-High Court constitutional mechanics.

OM22. Lower judicial service

Consider the following:

1. Article 234 requires rules framed after consultation with the State PSC and High Court.
2. *All India Judges Association* (2025) restored prospective three-year Bar practice for future Civil Judge entry recruitment.
3. The 2025 decision converted Civil Judges into an operational AIJS.

Which are correct?

A. 1 only. B. 1 and 2 only. C. 1, 2 and 3. D. 2 and 3 only.

Answer: B.

Explanation: [FACT/CURRENT] The recruitment rule is judicially prescribed within State systems; no AIJS has been created.

OM23. Control

Match the provision with its function:

1. Article 228 - constitutional-question withdrawal.
2. Article 229 - High Court staff and administrative expenses.

3. Article 235 - control over district and subordinate courts.

Which option is correct?

A. 1 and 3 only. B. 1 only. C. 1, 2 and 3. D. 2 only.

Answer: C.

Explanation: [FACT] These are distinct judicial, institutional-administrative and subordinate-control powers.

OM24. District and Sessions Judge

Which is accurate?

A. District Judge handles only constitutional writs. B. Sessions Judge is below Magistrate. C. They are always different offices. D. The same officer is District Judge on civil side and Sessions Judge on criminal side.

Answer: D.

Explanation: [FACT] Functional designation changes with jurisdiction.

OM25. Death sentence

A Sessions Court death sentence:

A. requires High Court confirmation. B. is confirmed by Governor alone. C. becomes final immediately. D. requires Assembly approval.

Answer: A.

Explanation: [FACT] High Court confirmation is mandatory.

OM26. Legal aid

Article 39A concerns:

A. contempt. B. equal justice and free legal aid. C. judicial transfer. D. High Court retirement.

Answer: B.

Explanation: [FACT] The Legal Services Authorities Act implements the framework.

OM27. Ordinary Lok Adalat

If settlement fails, an ordinary Lok Adalat:

A. convicts the accused. B. transfers the judge. C. does not adjudicate the contested merits. D. imposes arbitration.

Answer: C.

Explanation: [FACT] Its core mode is consensual settlement.

OM28. Criminal scope

Lok Adalat may settle:

A. no civil dispute. B. every criminal offence. C. non-compoundable offences. D. compoundable criminal matters.

Answer: D.

Explanation: [FACT] Non-compoundable offences are excluded.

OM29. AIJS route

Which sequence correctly describes creation of an All India Judicial Service?

A. Rajya Sabha resolution supported by two-thirds present and voting, followed by parliamentary law. B. Inter-State Council recommendation followed automatically by UPSC recruitment. C. Lok Sabha simple resolution followed by a presidential ordinance. D. CJI notification followed by State ratification.

Answer: A.

Explanation: [FACT] Article 312 supplies the route; Article 312(3) excludes posts below district judge.

OM30. AIJS floor

Article 312(3) means AIJS cannot include:

A. reserved categories. B. posts below district judge. C. district judges. D. judicial training.

Answer: B.

Explanation: [FACT] This is an express constitutional limit.

OM31. AIJS status

As of 5 September 2026:

A. AIJS has replaced State services. B. Article 235 is repealed. C. no AIJS is operational. D. UPSC recruits every civil judge.

Answer: C.

Explanation: [CURRENT] Recruitment remains under State constitutional structures.

OM32. eCourts Phase III

Which combination best reflects eCourts Phase III?

1. Four-year Central Sector Scheme approved in 2023.
2. Outlay of Rs 7,210 crore.
3. Digitisation, e-filing/e-payments and e-Sewa Kendras.
4. Replacement of judges by automated merits decisions.

A. 1, 3 and 4 only. B. 2 and 4 only. C. 1 and 2 only. D. 1, 2 and 3 only.

Answer: D.

Explanation: [CURRENT] Technology supports process and access; it does not replace reasoned human adjudication.

OM33. Digital justice

Which is a sound qualification?

A. e-filing cannot replace judges, staff and procedural fairness. B. case data should determine merits. C. virtual hearings remove digital exclusion. D. technology automatically eliminates pendency.

Answer: A.

Explanation: [ANALYSIS] Technology is an enabler, not adjudication itself.

OM34. Vacancy data

The Department of Justice statement dated 1 July 2026 records which High Court totals?

A. 1,122 sanctioned; 789 working; 333 vacant. B. 1,122 sanctioned; 781 working; 341 vacant. C. 1,122 sanctioned; 797 working; 325 vacant. D. 1,079 sanctioned; 781 working; 298 vacant.

Answer: B.

Explanation: [CURRENT] The figures are a dated snapshot and must not be reused as timeless data.

OM35. NJAC

Consider the following appointment controls:

1. Article 217 contains the collegium's present numerical composition.
2. The NJAC remains operative alongside the collegium.
3. Collegium primacy is judicially developed, while the constitutional text specifies presidential appointment and consultation.

Which is correct?

A. 2 and 3 only. B. 1 only. C. 3 only. D. 1 and 2 only.

Answer: C.

Explanation: [FACT] The NJAC was invalidated in 2015; collegium composition comes from the Judges Cases and procedure, not Article 217's text.

OM36. High Court role

The best description is:

A. only State executive adviser. B. only an appellate criminal court. C. tribunal without constitutional status. D. constitutional rights court, appellate court, supervisor and district-judiciary controller.

Answer: D.

Explanation: [ANALYSIS] Articles 215, 226-228 and 235 create the combined role.

Remedial MCQs - strict A -> A -> C -> D rotation

R1. Age trap

High Court retirement age:

A. 62. B. 60. C. no retirement. D. 65.

Answer: A.

Remedy: HC 62; SC 65.

R2. Oath trap

Oath is before:

A. Lok Sabha Speaker. B. Governor or authorised person. C. Chief Minister. D. President only.

Answer: B.

Remedy: Appointment by President, oath before Governor.

R3. Writ trap

Wider in purpose:

A. Article 136. B. Article 227. C. Article 226. D. Article 32.

Answer: C.

Remedy: Article 226 covers FRs plus other legal purposes.

R4. Prohibition-certiorari trap

The completed order is ordinarily quashed by:

A. habeas corpus. B. prohibition. C. mandamus. D. certiorari.

Answer: D.

Remedy: Prohibition prevents; certiorari corrects after order.

R5. Common-HC trap

The Constitution permits:

A. one High Court for multiple States/UTs. B. no UT jurisdiction. C. one High Court per district only. D. only 28 High Courts.

Answer: A.

Remedy: Article 231.

R6. District appointment trap

District judges:

A. are elected. B. are appointed by Governor in consultation with High Court. C. are appointed by High Court alone. D. are appointed by SPSC alone.

Answer: B.

Remedy: Article 233.

R7. Control trap

Posting and promotion control belongs to:

A. Governor personally. B. Parliament. C. High Court. D. State Cabinet.

Answer: C.

Remedy: Article 235.

R8. AIJS trap

AIJS:

A. already recruits all judges. B. includes every magistrate automatically. C. needs only an executive order. D. is not operational and cannot include posts below district judge.

Answer: D.

Remedy: Articles 312 and 312(3).

R9. Court-of-record trap

Article 215 includes:

A. contempt power. B. AIJS. C. writ territorial extension. D. district appointment.

Answer: A.

Remedy: Court of record and contempt.

R10. Article 227 trap

Article 227 is:

A. judicial removal. B. superintendence over courts/tribunals except Armed-Forces-law forums. C. only an appeal. D. a Fundamental Right.

Answer: B.

Remedy: Supervision is not routine factual reappraisal.

R11. Lok Adalat trap

Ordinary Lok Adalat may settle:

A. every criminal prosecution. B. constitutional removal proceedings. C. compoundable criminal and civil disputes by settlement. D. non-compoundable offences.

Answer: C.

Remedy: Consent and compoundability control.

R12. Technology trap

eCourts Phase III:

A. abolishes physical courts. B. decides cases algorithmically. C. replaces Article 226. D. digitises and improves process but does not replace adjudication.

Answer: D.

Remedy: Treat technology as capacity infrastructure.

PYQS AND ANSWER PRACTICE

Verified/cross-owned Mains PYQs

PYQ 1 - UPSC GS-II 2024, Q2 - access-to-justice application

Verified neutral demand: Explain and distinguish Lok Adalats and Arbitration Tribunals, including whether they entertain civil and criminal matters. **10 marks | 150 words | Primary detailed owner: Lok Adalats/Administrative Tribunals; application here: subordinate justice**

Model answer

Claim: [FACT] Lok Adalat is a statutory settlement institution serving access to justice; arbitration is consensual private adjudication of arbitrable civil disputes.

Named evidence: The Legal Services Authorities Act, 1987 authorises Lok Adalats. They facilitate compromise, and an agreed award is final, binding and decree-like. Ordinary Lok Adalats cannot decide a contested case on merits if settlement fails. They may settle civil disputes and compoundable criminal offences, never non-compoundable offences.

Arbitration arises from an arbitration agreement under the Arbitration and Conciliation Act. The tribunal hears evidence and renders an arbitral award subject to limited statutory challenge. It handles arbitrable civil/commercial disputes, not criminal prosecution.

Qualification: Permanent Lok Adalats for public-utility services have a distinct statutory conciliation-cum-adjudication role after failed settlement; they should not be equated with ordinary Lok Adalats.

Verdict: Both reduce ordinary-court burden, but Lok Adalat is access-oriented consensual justice, while arbitration is party-chosen adjudication.

Evidence chain: Article 39A -> Legal Services Authorities Act -> compromise/compoundable limit -> arbitration agreement -> civil-commercial field.

Why this earns marks: It distinguishes source, consent, subject matter, criminal limits and legal effect, then adds the Permanent Lok Adalat qualification within 150 words.

How to improve this answer: Compress the statutory comparison into a five-row mental matrix: source, consent, civil field, criminal field and legal effect; reserve one sentence for the Permanent Lok Adalat exception.

Demand decoding: The directive **answer** requires a direct position on "PYQ 1 - UPSC GS-II 2024, Q2 - access-to-justice application", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "PYQ 1 - UPSC GS-II 2024, Q2 - access-to-justice application".

Analytical body:

- 1. Claim and named evidence:** PYQ 1 - UPSC GS-II 2024, Q2 - access-to-justice application **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Verified neutral demand: Explain and distinguish Lok Adalats and Arbitration Tribunals, including whether they entertain civil and criminal matters. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** marks 150 words Primary detailed owner: Lok Adalats/Administrative Tribunals; application here: subordinate justice **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** Claim: [FACT] Lok Adalat is a statutory settlement institution serving access to justice; arbitration is consensual private adjudication of arbitrable civil disputes. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or

legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** Qualification: Permanent Lok Adalats for public-utility services have a distinct statutory conciliation-cum-adjudication role after failed settlement; they should not be equated with ordinary Lok Adalats. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "PYQ 1 - UPSC GS-II 2024, Q2 - access-to-justice application".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

PYQ 2 - UPSC GS-II 2025, Q13 - appointments application

Verified neutral demand: Critically examine the collegium system of judicial appointments in India with comparison to the United States. **15 marks | 250 words | Primary owner: Polity 18; application here: High Court appointments**

Model answer

Claim: [FACT] India's collegium prioritises judicial independence through judicial primacy, while the United States uses presidential nomination and Senate confirmation, making political accountability more explicit.

Indian mechanism: Article 217 text provides presidential appointment after consultation with the CJI, Governor and High Court Chief Justice. The Judges Cases transformed consultation into collegium primacy. For High Court appointments, the originating Chief Justice consults two senior colleagues and the Supreme Court collegium of the CJI plus two senior-most judges considers the proposal. The NJAC was struck down in 2015.

Strengths: insulation from direct executive control, professional evaluation and protection of Basic Structure independence.

Weaknesses: opacity, limited published criteria, delays, uneven diversity and diffused responsibility.

US comparison: open nomination/confirmation increases public scrutiny but also permits ideological polarisation and partisan delay.

Reform: publish objective criteria and timelines, create a appointments secretariat, disclose reasoned outcomes consistent with privacy, broaden the candidate pool and make executive objections timely.

Verdict: India should reform, not politically capture, the collegium. Independence requires judicial primacy; legitimacy requires transparent, timely and diverse selection.

Evidence chain: Article 217 -> Judges Cases -> HC and SC collegium stages -> Fourth Judges Case (2015) -> US nomination-confirmation -> targeted reform.

Routed Prelims demands - provenance without invented answer letters

Why this earns marks: It anchors both systems, weighs independence against accountability, and proposes reforms that answer the comparative directive rather than merely describing the collegium.

How to improve this answer: Use three explicit comparison axes-appointing actors, transparency and politicisation-then compress reforms to criteria, timelines and a secretariat so the 250-word conclusion remains balanced.

Prelims route 1 - 2019 GS-I Q81 - cross-owned

Verified neutral demand: High Court jurisdiction and Supreme Court review powers.

Doctrinal solution

- [FACT] Article 226 covers Fundamental Rights and other legal purposes.

- [FACT] Article 32 directly enforces Fundamental Rights.
- [FACT] Supreme Court appellate/review authority does not erase High Court constitutional jurisdiction.
- [FACT] *L. Chandra Kumar (1997)* protects Articles 226/227 review as Basic Structure.

Elimination rule: Reject any proposition that tribunalisation or Supreme Court appellate authority wholly excludes High Court review.

Prelims route 2 - 2021 GS-I Q88 - cross-owned

Verified neutral demand: Retired Supreme Court judges and High Court powers.

Doctrinal solution

- [FACT] Article 224A concerns retired High Court judges requested to sit in a High Court.
- [FACT] Article 128 separately concerns retired Supreme Court judges sitting in the Supreme Court.
- [FACT] A High Court's Article 226/227 powers remain institutionally distinct.

Elimination rule: Do not transfer Article 128 arrangements to Article 224A or treat a recalled retiree as a permanent judge.

Original solved Mains practice

Demand decoding: The directive **answer** requires a direct position on "PYQ 2 - UPSC GS-II 2025, Q13 - appointments application", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "PYQ 2 - UPSC GS-II 2025, Q13 - appointments application".

Analytical body:

1. **Claim and named evidence:** PYQ 2 - UPSC GS-II 2025, Q13 - appointments application **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Verified neutral demand: Critically examine the collegium system of judicial appointments in India with comparison to the United States. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** marks 250 words Primary owner: Polity 18; application here: High Court appointments **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Claim: [FACT] India's collegium prioritises judicial independence through judicial primacy, while the United States uses presidential nomination and Senate confirmation, making political accountability more explicit. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Strengths: insulation from direct executive control, professional evaluation and protection of Basic Structure independence. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "PYQ 2 - UPSC GS-II 2025, Q13 - appointments application".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M1. "Article 226 makes the High Court the everyday constitutional court." Analyse. (10 marks, 150 words)

Model answer

Claim: [FACT] Article 226 makes the High Court the locally accessible guardian of both Fundamental Rights and ordinary legal rights.

Named evidence: Unlike Article 32, it authorises writs for Fundamental Rights "and any other purpose." Article 226(2) connects jurisdiction to cause of action. *L. Chandra Kumar (1997)* protects Articles 226/227 review as Basic Structure and keeps tribunal decisions under High Court scrutiny.

Analysis: Citizens can challenge detention, jurisdictional error, public-duty failure and unlawful office without first converting every grievance into a Supreme Court case. Local access and broad purpose make the High Court the working constitutional court.

Qualification: [LIMIT] Relief is discretionary; adequate alternative remedies ordinarily matter, and territorial limits remain.

Verdict: Article 32 is the guaranteed national remedy for Fundamental Rights; Article 226 is the broader everyday rule-of-law jurisdiction.

Why this earns marks: It links the quoted proposition to wider-purpose writs, local territorial access, tribunal review and the discretion limit.

How to improve this answer: In the exam, use one citizen-facing example such as unlawful detention or refusal of a statutory duty, then state the alternative-remedy qualification before the verdict.

Demand decoding: The directive **analyse** requires a direct position on "M1. "Article 226 makes the High Court the everyday constitutional court." Analyse. (10 marks,...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M1. "Article 226 makes the High Court the everyday constitutional court." Analyse. (10 marks, 150 words)".

Analytical body:

- 1. Claim and named evidence:** M1. "Article 226 makes the High Court the everyday constitutional court." Analyse. (10 marks, 150 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Claim: [FACT] Article 226 makes the High Court the locally accessible guardian of both Fundamental Rights and ordinary legal rights. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** Qualification: [LIMIT] Relief is discretionary; adequate alternative remedies ordinarily matter, and territorial limits remain. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** Verdict: Article 32 is the guaranteed national remedy for Fundamental Rights; Article 226 is the broader everyday rule-of-law jurisdiction. **Analysis:** Connect structure or institution ->

norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication.

Qualification: State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** Why this earns marks: It links the quoted proposition to wider-purpose writs, local territorial access, tribunal review and the discretion limit. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication.

Qualification: State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M1. "Article 226 makes the High Court the everyday constitutional court." Analyse. (10 marks, 150 words)".

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M2. Compare Articles 32 and 226. (10 marks, 150 words)

Model answer

Claim: [FACT] Both enforce constitutional legality through writs, but they differ in nature, purpose, discretion and territorial reach.

Comparison: Article 32 is itself a Fundamental Right, lies in the Supreme Court and primarily enforces Fundamental Rights across India. Article 226 is a High Court power covering Fundamental Rights and other legal purposes, making it wider substantively. A High Court may apply the alternative-remedy rule, while Article 32 carries stronger remedial entitlement. Article 226 remains territorially linked, including cause-of-action jurisdiction.

Common control: *L. Chandra Kumar (1997)* places review under Articles 32 and 226/227 within Basic Structure.

Verdict: Article 32 guarantees the constitutional door; Article 226 places a wider door near the citizen. They are complementary, not hierarchical substitutes.

Why this earns marks: It compares nature, purpose, territorial reach and discretion while preserving their common Basic-Structure role.

How to improve this answer: Present a compact four-row comparison and avoid saying Article 226 is simply wider; write "wider in purpose, territorially bounded" in both body and conclusion.

Demand decoding: The directive **compare** requires a direct position on "M2. Compare Articles 32 and 226. (10 marks, 150 words)", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M2. Compare Articles 32 and 226. (10 marks, 150 words)".

Analytical body:

1. **Claim and named evidence:** M2. Compare Articles 32 and 226. (10 marks, 150 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [FACT] Both enforce constitutional legality through writs, but they differ in nature, purpose, discretion and territorial reach. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

3. **Claim and named evidence:** Common control: L. Chandra Kumar (1997) places review under Articles 32 and 226/227 within Basic Structure. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Verdict: Article 32 guarantees the constitutional door; Article 226 places a wider door near the citizen. They are complementary, not hierarchical substitutes. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Why this earns marks: It compares nature, purpose, territorial reach and discretion while preserving their common Basic-Structure role. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M2. Compare Articles 32 and 226. (10 marks, 150 words)".

Executable exam-length answer / compression plan: For a 10-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise three points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M3. Examine how Articles 227 and 235 secure the independence of the subordinate judiciary. (15 marks, 250 words)

Model answer

Claim: [FACT] Article 227 protects adjudicative legality through supervision, while Article 235 protects institutional independence through administrative control.

Mechanism: Article 227 gives High Courts judicial and administrative superintendence over territorial courts and tribunals, excluding Armed-Forces-law forums. It corrects grave jurisdictional and procedural failure without becoming a routine appeal. Article 235 vests posting, promotion, leave and disciplinary control over district and subordinate courts in the High Court.

Supporting design: Article 233 requires Governor-High Court consultation for district judges; Article 234 adds State PSC consultation for lower recruitment. Article 228 lets the High Court withdraw substantial constitutional-interpretation questions.

Analysis: Trial judges frequently decide cases involving State authorities. Executive control over their careers would threaten impartiality; High Court control separates administration from litigant government.

Qualification: Recruitment, finance and infrastructure remain shared with the State, while High Court control itself must follow law and natural justice.

Verdict: Articles 227 and 235 make the High Court the head, not merely the appellate apex, of an independent State judiciary.

Why this earns marks: It separates adjudicative supervision from service control and connects both to Articles 233, 234 and 228.

How to improve this answer: Add *Nripendra Nath Bagchi* for disciplinary control and *Radhey Shyam* for Article 227 restraint; compress shared State responsibilities into one qualified counterpoint.

Demand decoding: The directive **examine** requires a direct position on "M3. Examine how Articles 227 and 235 secure the independence of the subordinate judiciary....", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified

conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M3. Examine how Articles 227 and 235 secure the independence of the subordinate judiciary. (15 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M3. Examine how Articles 227 and 235 secure the independence of the subordinate judiciary. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [FACT] Article 227 protects adjudicative legality through supervision, while Article 235 protects institutional independence through administrative control. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Analysis: Trial judges frequently decide cases involving State authorities. Executive control over their careers would threaten impartiality; High Court control separates administration from litigant government. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Qualification: Recruitment, finance and infrastructure remain shared with the State, while High Court control itself must follow law and natural justice. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Verdict: Articles 227 and 235 make the High Court the head, not merely the appellate apex, of an independent State judiciary. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M3. Examine how Articles 227 and 235 secure the independence of the subordinate judiciary. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M4. Critically examine the constitutional safeguards for High Court independence. (15 marks, 250 words)

Model answer

Claim: [FACT] High Court independence is secured through tenure, appointments, protected conditions, difficult removal, transfer consultation and un-excludable review.

Evidence: Article 217 provides presidential appointment with constitutional consultation and retirement at 62. Removal requires the Article 124(4)-type special-majority process. Article 221 protects conditions; Article 222 requires CJI consultation for transfer. Article 215 supplies court-of-record authority, while Articles 226/227 review is Basic Structure under *L. Chandra Kumar (1997)*. Article 235 protects control over lower courts.

Weaknesses: Collegium opacity, appointment delay, perceived punitive transfers, post-retirement incentives, vacancies and infrastructure gaps may weaken practical independence and public confidence.

Counterpoint: Full public disclosure may harm candidate privacy, and executive participation is legitimate in a constitutional appointment.

Reform: transparent criteria, appointment calendars, reasoned institutional dialogue, diversity, permanent secretariat and predictable infrastructure funding.

Verdict: The constitutional design is strong against direct control; delivery now depends on making appointments and administration timely, transparent and capacity-rich.

Why this earns marks: It covers appointment, tenure, finance, transfer, review and district control, then tests practical weaknesses and realistic reforms.

How to improve this answer: Organise safeguards under personnel, finance, jurisdiction and administration; use the dated vacancy ratio only as evidence of implementation strain, not as a constitutional defect.

Demand decoding: The directive **critically examine** requires a direct position on "M4. Critically examine the constitutional safeguards for High Court independence. (15 marks,...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M4. Critically examine the constitutional safeguards for High Court independence. (15 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M4. Critically examine the constitutional safeguards for High Court independence. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [FACT] High Court independence is secured through tenure, appointments, protected conditions, difficult removal, transfer consultation and un-excludable review. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Weaknesses: Collegium opacity, appointment delay, perceived punitive transfers, post-retirement incentives, vacancies and infrastructure gaps may weaken practical independence and public confidence. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Counterpoint: Full public disclosure may harm candidate privacy, and executive participation is legitimate in a constitutional appointment. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Reform: transparent criteria, appointment calendars, reasoned institutional dialogue, diversity, permanent secretariat and predictable infrastructure funding. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M4. Critically examine the constitutional safeguards for High Court independence. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named

evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M5. Should India establish an All India Judicial Service? Discuss. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] AIJS can improve recruitment coordination and diversity, but only if it preserves the federal and High Court controls embedded in Articles 233-235.

Constitutional route: Article 312 requires a Rajya Sabha resolution supported by two-thirds present and voting, followed by parliamentary law. Article 312(3) excludes posts below district judge.

Case for: national talent pool, uniform standards, predictable recruitment, professional training, diversity and faster district-judge vacancies.

Case against: local language and State law are essential; centralisation may weaken High Court control and State reservation/service structures; a national examination cannot fix infrastructure, staff or retention.

Design safeguards: district-judge entry only, strong High Court role in selection/probation/control, State language testing, local-law training, federal consultation, reservation and transparent cadre allocation.

Current status: [CURRENT] No AIJS is operational as of 5 September 2026.

Verdict: AIJS is desirable as a cooperative recruitment framework, not a central takeover. Uniform entry must coexist with local competence and Article 235 control.

Why this earns marks: It uses the exact Article 312 route, balances national standards against federal and linguistic concerns, and gives a conditional institutional design.

How to improve this answer: Mention that Article 312(3) excludes posts below district judge and distinguish AIJS from the separate 2025 three-year Bar-practice rule for Civil Judge recruitment.

Demand decoding: The directive **discuss** requires a direct position on "M5. Should India establish an All India Judicial Service? Discuss. (15 marks, 250 words)", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M5. Should India establish an All India Judicial Service? Discuss. (15 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M5. Should India establish an All India Judicial Service? Discuss. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [ANALYSIS] AIJS can improve recruitment coordination and diversity, but only if it preserves the federal and High Court controls embedded in Articles 233-235. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Constitutional route: Article 312 requires a Rajya Sabha resolution supported by two-thirds present and voting, followed by parliamentary law. Article 312(3) excludes posts below district judge. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Case for: national talent pool, uniform standards, predictable recruitment, professional training, diversity and faster district-judge vacancies. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or

legal-norm-versus-lived-outcome boundary.

5. **Claim and named evidence:** Case against: local language and State law are essential; centralisation may weaken High Court control and State reservation/service structures; a national examination cannot fix infrastructure, staff or retention. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M5. Should India establish an All India Judicial Service? Discuss. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M6. Judicial pendency is a governance problem, not merely a judicial problem. Analyse. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Pendency emerges from the entire justice chain: legislation, policing, prosecution, government litigation, judicial vacancies, procedure, infrastructure and citizen access.

Causes: delayed appointments, weak registries, repeated adjournments, service failures, frequent State appeals, complex statutes, forensic/prosecution gaps and uneven lower-court capacity.

Consequences: undertrial hardship, commercial uncertainty, weak rights enforcement, higher legal cost and pressure for tribunals or executive settlement.

Constitutional frame: Articles 226/227 and 235 give High Courts rights and system-management roles, but States fund infrastructure and participate in recruitment under Articles 233-234. Article 39A makes access a public obligation.

Reforms: fill posts through calendars, strengthen staff and service, use age-based docket management, responsible government litigation, mediation/legal aid, eCourts safeguards and process simplification.

Qualification: [LIMIT] Disposal targets must not reward hurried justice or compromise independence.

Verdict: Courts must manage cases, but governments must stop creating avoidable litigation and fund the institutions that constitutional remedies require.

Why this earns marks: It maps executive litigation, staffing, service, procedure and judicial management into one causal diagnosis with safeguards against quota-driven disposal.

How to improve this answer: Open with the dated 1 July 2026 strength snapshot, then assign one executable reform each to Union, State, High Court and litigating departments.

Demand decoding: The directive **analyse** requires a direct position on "M6. Judicial pendency is a governance problem, not merely a judicial problem. Analyse. (15...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M6. Judicial pendency is a governance problem, not merely a judicial problem. Analyse. (15 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M6. Judicial pendency is a governance problem, not merely a judicial problem. Analyse. (15 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

2. **Claim and named evidence:** Claim: [ANALYSIS] Pendency emerges from the entire justice chain: legislation, policing, prosecution, government litigation, judicial vacancies, procedure, infrastructure and citizen access. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Causes: delayed appointments, weak registries, repeated adjournments, service failures, frequent State appeals, complex statutes, forensic/prosecution gaps and uneven lower-court capacity. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Consequences: undertrial hardship, commercial uncertainty, weak rights enforcement, higher legal cost and pressure for tribunals or executive settlement. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Reforms: fill posts through calendars, strengthen staff and service, use age-based docket management, responsible government litigation, mediation/legal aid, eCourts safeguards and process simplification. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M6. Judicial pendency is a governance problem, not merely a judicial problem. Analyse. (15 marks, 250 words)".

Executable exam-length answer / compression plan: For a 15-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise five points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M7. Evaluate eCourts Phase III as an access-to-justice reform. (20 marks, 250 words)

Model answer

Claim: [CURRENT] eCourts Phase III is a major justice-infrastructure programme, not a replacement for judges or adjudication.

Design: Approved for 2023-2027 with Rs 7,210 crore, it seeks record digitisation, e-filing, e-payment, paperless workflows, e-Sewa Kendras, interoperable data and intelligent case management.

Benefits: reduces travel and filing cost, improves record retrieval, supports hybrid hearings, tracks case age, enables transparent listing and aids administrators in finding bottlenecks. District litigants and lawyers may gain most where physical distance is large.

Risks: digital divide, inaccessible interfaces, language exclusion, cyberattacks, privacy leakage, poor scanning quality, unreliable connectivity and algorithmic scheduling without reasons.

Safeguards: assisted access through e-Sewa Kendras, open standards, local languages, cyber audits, data minimisation, human control over listing/merits, physical alternatives and user training.

Qualification: [LIMIT] Faster digital movement cannot cure vacancies, weak legal aid or poor investigation.

Verdict: Phase III can convert courts from paper-bound institutions into accessible public infrastructure only if digital-by-default never becomes digital-only.

Why this earns marks: It states the official period and outlay, follows the user journey, and balances efficiency with inclusion, privacy and human adjudication.

How to improve this answer: Use a three-part test-access, efficiency and due process-and connect every risk to a safeguard; avoid listing technologies without explaining the justice outcome.

Demand decoding: The directive **evaluate** requires a direct position on "M7. Evaluate eCourts Phase III as an access-to-justice reform. (20 marks, 250 words)", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M7. Evaluate eCourts Phase III as an access-to-justice reform. (20 marks, 250 words)".

Analytical body:

1. **Claim and named evidence:** M7. Evaluate eCourts Phase III as an access-to-justice reform. (20 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
2. **Claim and named evidence:** Claim: [CURRENT] eCourts Phase III is a major justice-infrastructure programme, not a replacement for judges or adjudication. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
3. **Claim and named evidence:** Design: Approved for 2023-2027 with Rs 7,210 crore, it seeks record digitisation, e-filing, e-payment, paperless workflows, e-Sewa Kendras, interoperable data and intelligent case management. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
4. **Claim and named evidence:** Risks: digital divide, inaccessible interfaces, language exclusion, cyberattacks, privacy leakage, poor scanning quality, unreliable connectivity and algorithmic scheduling without reasons. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
5. **Claim and named evidence:** Safeguards: assisted access through e-Sewa Kendras, open standards, local languages, cyber audits, data minimisation, human control over listing/merits, physical alternatives and user training. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M7. Evaluate eCourts Phase III as an access-to-justice reform. (20 marks, 250 words)".

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

M8. "High Courts combine constitutional adjudication with judicial administration." Evaluate the strengths and strains of this dual role. (20 marks, 250 words)

Model answer

Claim: [FACT] High Courts protect rights under Article 226 while supervising and administering the lower judiciary through Articles 227 and 235.

Strengths: The same constitutional court can identify systemic illegality, correct subordinate forums, ensure uniform precedent, control judicial careers and withdraw constitutional questions under Article 228. Integration protects district judges from the executive and connects administration to adjudicative standards.

Strains: Writ caseload, civil/criminal appeals, vacancies, registry management and disciplinary administration compete for time. Excessive Article 227 intervention may become a second appeal; weak administration can delay rights cases. Centralised High Court control may also overlook district-level management needs.

Reform: professional court administration, delegated registry authority with judicial oversight, data-based case flow without disposal quotas, regular inspections, district leadership training, timely appointments and separate administrative time.

Qualification: [LIMIT] Administrative professionalisation must not transfer decisional control to the executive or opaque technology vendors.

Verdict: The dual role is constitutionally valuable because it unifies rights and independence; it needs specialised management capacity so administration supports rather than consumes adjudication.

Why this earns marks: It integrates Articles 226, 227, 229 and 235, explains the institutional benefit, and diagnoses workload and management conflicts.

How to improve this answer: Build the body as a two-column strengths/strains matrix, add professional registry administration as the bridge, and retain judicial control as the non-negotiable limit.

Demand decoding: The directive **evaluate** requires a direct position on "M8. "High Courts combine constitutional adjudication with judicial administration." Evaluate...", all clauses, a sociological mechanism, historical trajectory, intersectional and regional variation, named Indian evidence, constitutional/institutional boundaries and a qualified conclusion.

Detailed examiner-grade model answer:

Introduction and thesis: The answer must resolve the sociological demand in "M8. "High Courts combine constitutional adjudication with judicial administration." Evaluate the strengths and strains of this dual role. (20 marks,...".

Analytical body:

- 1. Claim and named evidence:** M8. "High Courts combine constitutional adjudication with judicial administration." Evaluate the strengths and strains of this dual role. (20 marks, 250 words) **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 2. Claim and named evidence:** Claim: [FACT] High Courts protect rights under Article 226 while supervising and administering the lower judiciary through Articles 227 and 235. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 3. Claim and named evidence:** Qualification: [LIMIT] Administrative professionalisation must not transfer decisional control to the executive or opaque technology vendors. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 4. Claim and named evidence:** Verdict: The dual role is constitutionally valuable because it unifies rights and independence; it needs specialised management capacity so administration supports rather than consumes adjudication. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication. **Qualification:** State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.
- 5. Claim and named evidence:** Why this earns marks: It integrates Articles 226, 227, 229 and 235, explains the institutional benefit, and diagnoses workload and management conflicts. **Analysis:** Connect structure or institution -> norm/incentive/power/agency mechanism -> differentiated social outcome -> feedback or policy implication.

Qualification: State internal group variation, regional/historical scope, correlation-versus-causation or legal-norm-versus-lived-outcome boundary.

Counter-position / limit: Neither a constitutional provision, one scheme, aggregate correlation nor a single community example establishes uniform implementation, causation or national experience; test institutions, power, agency, intersectionality, region, period and evidence status.

Qualified conclusion: The answer must resolve the sociological demand in "M8. "High Courts combine constitutional adjudication with judicial administration." Evaluate the strengths and strains of this dual role. (20 marks,...".

Executable exam-length answer / compression plan: For a 20-mark answer, spend about one-sixth of the time decoding the directive and drawing the mechanism; define and state a thesis; organise six to eight points as claim -> named evidence -> analysis -> qualification; compress examples before mechanisms and reserve the final minute for causation, group variation and legal-outcome limits.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

37. Article 226 versus Article 227 in answer writing

Question	Article 226	Article 227
Primary function	public-law remedy	systemic supervision
Typical trigger	petition alleging legal/right violation	jurisdictional or grave supervisory defect
Writ language	expressly named writs/orders/directions	superintendence
Suo motu	ordinarily petition-based	can be suo motu
Remedy style	direct constitutional relief	correction/control of subordinate forum

38. High Court versus Supreme Court

Dimension	High Court	Supreme Court
Constitutional remedy	Article 226	Article 32
Purpose	FRs and other legal rights	FRs under Article 32
Retirement	62	65
Original civil work	selected HCs	federal/original constitutional fields
Supervision of district courts	Articles 227/235	no equivalent daily State administration
Court count	25 institutions	one Supreme Court

39. Appointment reform matrix

Reform	Benefit	Risk/qualification
published selection criteria	transparency	privacy and reputational fairness
appointment calendar	vacancy reduction	cannot override constitutional consultation
diverse candidate pool	representation and legitimacy	merit must be substantively defined
reasoned reconsideration	accountable executive-collegium dialogue	sensitive material may require confidentiality
permanent secretariat	institutional memory	design must preserve judicial independence

40. Answer-writing evidence discipline

Visual 39 - Evidence chain

CLAIM

- > ARTICLE / CASE / OFFICIAL PROGRAMME
- > MECHANISM
- > ANALYSIS
- > QUALIFICATION
- > DIRECTIVE-SPECIFIC VERDICT

Example

- Claim: High Court control protects district judicial independence.
- Named evidence: Articles 233-235.
- Mechanism: consultation for appointments and High Court control over posting/promotion/leave.
- Analysis: removes direct State-executive leverage.
- Qualification: recruitment and infrastructure remain shared responsibilities.
- Verdict: independence requires High Court control plus coordinated capacity.

CONSOLIDATED REGISTER NOTES

Integrated judicial chain

Supreme Court

|

High Courts: Articles 214-231

|

District and subordinate judiciary: Articles 233-237

- High Court = constitutional rights court + appellate court + supervisor + administrative controller.
- India has 25 High Courts; Article 231 permits common HCs.
- Articles 226/227 review is part of Basic Structure.

High Court judge quick facts

Item	Rule
Appointment	President under Article 217
Constitutional consultation	CJI, Governor, and HC CJ for puisne judge
Collegium stage	CJI + two senior-most SC judges
Qualification	citizen + 10 judicial years or 10 advocacy years
Distinguished jurist	not an HC route
Oath	Governor/authorised person, Article 219
Retirement	62
Transfer	President after CJI consultation, Article 222
Removal	same stringent standard as SC judge

Temporary judges

- Article 223: Acting Chief Justice.
- Article 224: additional and acting judges.
- Article 224A: retired High Court judge requested to sit, with President's prior consent.

Jurisdiction

Power	Anchor
Court of record/contempt	Article 215
Writs	Article 226
Superintendence	Article 227
Constitutional withdrawal	Article 228
District control	Article 235
Judicial review	Basic Structure; <i>L. Chandra Kumar (1997)</i>

Five writs

- Habeas corpus: test detention.
- Mandamus: command legal/public duty.
- Prohibition: stop jurisdictional excess before completion.
- Certiorari: quash completed jurisdictional error.
- Quo warrant: test title to public office.

Article 32 versus 226

Article 32	Article 226
Fundamental Right	constitutional power
FR enforcement	FRs plus other legal purposes
Supreme Court	High Court
all-India reach	territorial/cause-of-action reach
stronger remedial entitlement	discretionary, alternative-remedy discipline

Subordinate judiciary

- Article 233: district judges appointed by Governor in consultation with HC.
- Article 233(2) text: outside-service candidate needs seven years as advocate/pleader plus HC recommendation.
- *Rejanish K.V. (2025)*: prospectively permits qualifying serving judicial officers in direct recruitment under the Court's combined-experience, age and application-date rules.
- *All India Judges Association (2025)*: prospective three-year Bar practice for Civil Judge entry and revised promotional channels.
- Article 234: lower judicial service through Governor's rules with SPSC and HC consultation.
- Article 235: HC control over posting, promotion, leave and discipline.
- District Judge = Sessions Judge on criminal side.
- Death sentence requires HC confirmation.

Access institutions

- Article 39A: equal justice and free legal aid.
- Legal Services Authorities Act, 1987: NALSA-SLSA-DLSA-Taluk framework.
- Ordinary Lok Adalat: consensual settlement; compoundable criminal matters only.
- Permanent Lok Adalat: distinct pre-litigation public-utility model with statutory merits power after conciliation failure.
- Arbitration: private consensual adjudication of arbitrable civil/commercial disputes.

Current reforms

- Collegium remains operative; NJAC not in force.
- AIJS is not operational.
- AIJS route: Article 312 Rajya Sabha resolution plus parliamentary law.
- Article 312(3): no posts below district judge.
- eCourts Phase III: 2023-2027, Rs 7,210 crore.
- Vacancy and pendency numbers must be cited from a dated official dashboard.

Answer-writing evidence bank

Claim	Named evidence	Qualification
HC is widest local rights court	Article 226	territorial and discretionary limits
review cannot be excluded	<i>L. Chandra Kumar (1997)</i>	tribunals still operate
lower judiciary independent	Articles 233-235	capacity is shared responsibility
transfer needs safeguards	Article 222 and collegium	consent not constitutionally required
AIJS may improve recruitment	Article 312	posts below district judge excluded
digital courts improve access	eCourts Phase III	digital cannot become digital-only
legal aid widens justice	Article 39A and 1987 Act	settlement forums cannot replace courts

Final verdicts

- **High Court:** the everyday constitutional court and head of the State judicial system.
- **Article 226:** wider in purpose than Article 32, but territorially and discretionarily disciplined.
- **Subordinate independence:** built through High Court consultation and Article 235 control.
- **AIJS:** possible only as cooperative reform preserving local language and High Court authority.
- **Digital justice:** public infrastructure that must remain assisted, secure and human-controlled.

Last-minute traps

1. 25 High Courts, not one per State/UT.
2. HC retirement 62; SC retirement 65.
3. President appoints; Governor administers oath.
4. No distinguished-jurist route for HC.
5. Article 226 wider in purpose; Article 32 wider nationally and itself a FR.
6. Prohibition prevents; certiorari quashes.
7. Article 227 supervision is not a routine appeal.
8. Article 228 requires a substantial constitutional-interpretation question.
9. District judge: Governor + HC consultation.
10. Article 234: SPSC + HC consultation.
11. Article 235 control belongs to HC.

12. AIJS is not operational and cannot include posts below district judge.
13. Ordinary Lok Adalat cannot decide contested merits after settlement fails.
14. eCourts does not replace judges, staff or due process.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Constitutional location, court map and dated capacity

ARTICLES 214-237: STATE-LEVEL CONSTITUTIONAL JUSTICE

Supreme Court -> High Court -> district and subordinate courts.

214: High Court for each State | 231: common High Court by parliamentary law.

25 HIGH COURTS as at 5 September 2026; one-per-State/UT is false.

HISTORY

1862: Calcutta, Bombay and Madras | 1866: Allahabad.

Inherited jurisdiction continues through Article 225 subject to Constitution and law.

DATED CAPACITY: DEPARTMENT OF JUSTICE, 1 JULY 2026

1,122 sanctioned | 781 working | 341 vacant | vacancy share about 30.4%.

Never quote working strength or vacancy without its date.

CORE ROLE

constitutional remedies + appeals + supervision + judicial administration.

MUST REMEMBER: Audit Articles 214-237 as separate constitutional controls: High Court

existence/common courts, judge appointment and service, jurisdiction, writs,

superintendence, court administration and subordinate-judiciary recruitment/control must not

be collapsed into one judicial-independence claim.

ASCII MASTER FLOW - PANEL 2/12: High Court judges: appointment, qualification and independence

ARTICLE 216

Chief Justice + other judges as President considers necessary.

ARTICLE 217 APPOINTMENT

President -> CJI + Governor consultation -> HC Chief Justice for a puisne judge.

ORIGINATING HC: Chief Justice + two senior-most colleagues.

SC COLLEGIUM FOR HC APPOINTMENT: CJI + two senior-most SC judges.

QUALIFICATION

Indian citizen + ten judicial-office years OR ten High Court advocacy years.

No distinguished-jurist route; no constitutional minimum age.

SERVICE

Article 219 oath before Governor/appointee | retirement 62 | resignation to President.

Article 218 applies the Article 124 removal route | Article 221 protects conditions.

Article 229 administrative expenses are charged on the State Consolidated Fund.

CASE ARC

First Judges Case (1981) -> executive primacy | Second Judges Case (1993) -> judicial primacy

Third Judges Case (1998) -> plural collegium

| Fourth Judges Case (2015) -> collegium remains operative.

ASCII MASTER FLOW - PANEL 3/12: Transfer, temporary judges and High Court administration

ARTICLE 222 TRANSFER

President acts after CJI consultation; consent is not constitutionally required.

CURRENT PROCEDURE: CJI consults four senior-most SC judges + both affected HC Chief Justices.

Sankalchand Himmatlal Sheth (1977): full, effective consultation; public interest, not punishment.

TEMPORARY CAPACITY

223 acting Chief Justice | 224 additional/acting judges | 224A consenting retired judge.

These address temporary need; they do not replace regular appointments.

ARTICLE 229

Chief Justice/authorised officer appoints HC staff; Governor has limited role/salary role.

TERRITORIAL DESIGN

230: Parliament may extend/exclude HC jurisdiction over a UT.

231: Parliament may create a common High Court.

Seats and benches follow constitutional, statutory and reorganisation arrangements.

ASCII MASTER FLOW - PANEL 4/12: Jurisdiction gateway and Article 226 safeguards

JURISDICTION MAP

225 inherited/existing jurisdiction | 226 writ | 227 supervision | 228 withdrawal

+ statutory civil, criminal, election, admiralty and testamentary fields.

ARTICLE 226 PURPOSE

Fundamental Rights + any other legal purpose: wider in purpose than Article 32.

Territorial, discretionary and respondent-sensitive: not a national writ.

ARTICLE 226(2)

Cause of action wholly or partly within territory can support relief against an outside respondent.

Residence alone is insufficient.

ARTICLE 226(3)

Qualifying application to vacate an ex parte interim order -> disposal within two weeks

from the later trigger, or next open day -> otherwise interim order stands vacated.

LIMIT

Not every High Court has identical ordinary original civil jurisdiction.

ASCII MASTER FLOW - PANEL 5/12: Five writs and the alternative-remedy firewall

WRONG -> WRIT

unlawful detention -> HABEAS CORPUS, including private detention

refused public/legal duty -> MANDAMUS, including a body performing public duty

ongoing jurisdictional excess -> PROHIBITION

completed jurisdictional error -> CERTIORARI

unlawful occupation of public office -> QUO WARRANTO.

ARTICLE 226 ALSO PERMITS ORDERS AND DIRECTIONS

Do not imprison remedies inside old English technical forms.

ALTERNATIVE REMEDY

Statutory appeal/revision ordinarily first, but writ discretion survives for:

Fundamental Rights | natural-justice failure | want of jurisdiction | challenge to vires.

EXAM FIREWALL

Alternative remedy is self-restraint, not extinction of jurisdiction.

ASCII MASTER FLOW - PANEL 6/12: Tribunals, Basic Structure and supervisory restraint

L. CHANDRA KUMAR (1997)

Articles 226/227 and 32 review are Basic Structure.

Articles 323A/323B tribunal decisions -> High Court Division Bench scrutiny.

Tribunals supplement; they neither disappear nor finally replace constitutional courts.

ARTICLE 227

Judicial + administrative superintendence over territorial courts/tribunals;

Armed-Forces-law forums excluded; petition or suo motu possible.

RADHEY SHYAM (2015): civil-court judicial orders belong under 227, not 226.

K. VALARMATHI (2025): supervision cannot supplant trial and statutory appeal.

ARTICLE 228

Substantial constitutional-interpretation question -> HC withdraws

-> decides question or case -> may return case with binding answer.

TRAP: supervision and withdrawal are not routine appeals.

CLOSE DISTINCTION: Keep Articles 226, 227 and 235 distinct. Article 226 reaches Fundamental Rights and other legal rights; Article 227 is supervisory rather than an ordinary appeal;

Article 235 gives the High Court administrative control over the district and subordinate judiciary.

ASCII MASTER FLOW - PANEL 7/12: Articles 233-237 and current recruitment law

ARTICLE 233 DISTRICT JUDGES

Governor appoints/posts/promotes in consultation with High Court.

Article 233(2) text: outside-service candidate -> seven advocacy years + HC recommendation.

REJANISH K.V. v. K. DEEPA (2025 INSC 1208)

Prospectively overrules Dheeraj Mor.

Qualifying serving judicial officers may compete in direct recruitment using combined advocacy/judicial-service experience; minimum age 35; eligibility at application date.

ARTICLE 234 BELOW DISTRICT JUDGE

Governor's rules + State PSC consultation + High Court consultation.

ALL INDIA JUDGES ASSOCIATION (20 MAY 2025)

future Civil Judge entry -> three years Bar practice;

25% LDCE District-Judge promotion route + suitability control.

236 defines district judge/judicial service | 237 can apply chapter to notified magistrates.

ASCII MASTER FLOW - PANEL 8/12: Article 235 control and the district justice chain

ARTICLE 235 CONTROL IN HIGH COURT

posting + promotion + leave + disciplinary control, subject to law and appeal rights.

NRIPENDRA NATH BAGCHI (1966): control includes disciplinary authority.

CHANDRA MOHAN (1966): executive dominance in district-judge selection is unconstitutional.

INDEPENDENCE CHAIN

Governor/State recruitment role + mandatory HC consultation

-> High Court career control

-> trial judges insulated from the litigating executive.

DISTRICT STRUCTURE, SUBJECT TO STATE LAW

District Judge / Sessions Judge

-> Civil Judge Senior Division / Chief Judicial Magistrate

-> Civil Judge Junior Division / Judicial Magistrate.

Article 236 defines district judge broadly; names and pecuniary powers vary.

CRIMINAL CONTROL

Sessions death sentence -> High Court confirmation before execution.

Article 227 corrects jurisdiction; Article 235 administers careers: do not conflate them.

ASCII MASTER FLOW - PANEL 9/12: Legal aid and specialised access institutions

ARTICLE 39A + LEGAL SERVICES AUTHORITIES ACT, 1987

NALSA -> SLSA / High Court Legal Services Committee -> DLSA -> Taluk committee.

Eligibility uses statutory categories and prescribed income ceilings; one old figure is unsafe.

ORDINARY LOK ADALAT

settlement by consent | civil + compoundable criminal matters | no merits decision after failure.

PERMANENT LOK ADALAT

pre-litigation public-utility field | conciliation first | limited merits decision after failure.

ARBITRATION

agreement-based private adjudication of arbitrable civil/commercial disputes.

FAMILY COURTS / GRAM NYAYALAYAS

statutory specialised access; implementation and jurisdiction are not nationally uniform.

PYQ 2024: compare source, consent, field, criminal reach and legal effect.

ASCII MASTER FLOW - PANEL 10/12: All India Judicial Service: route, design and limits

ARTICLE 312 ROUTE

Rajya Sabha: two-thirds of members present and voting

-> Parliament may create service by law.

ARTICLE 312(3): AIJS cannot include posts below district judge.

CURRENT STATUS, 28 AUGUST 2026: no AIJS exists.

CASE FOR

national standards | wider pool | predictable recruitment | mobility and diversity.

CASE AGAINST

language and local law | State reservation/cadre design | federal role | career integration.

NON-NEGOTIABLE DESIGN

High Court role in selection/probation + Article 235 control + local-language testing

+ State-law training + federal consultation + transparent allocation.

Do not confuse AIJS with the 2025 Civil Judge Bar-practice rule.

ASCII MASTER FLOW - PANEL 11/12: Capacity, eCourts and data-governance reform

CAPACITY DIAGNOSIS

vacancies + staff/infrastructure + process/service delay + government litigation

-> backlog -> cost/undertrial hardship -> weaker rights and commercial certainty.

DATED HIGH COURT SNAPSHOT, 1 JULY 2026

1,122 sanctioned | 781 working | 341 vacant.

ECOURTS PHASE III, 2023-2027, RS 7,210 CRORE

record digitisation + e-filing/e-payments + e-Sewa Kendras + interoperable management.

NJDG

age/stage/workload visibility -> diagnosis and allocation;

not crude judge ranking or disposal quotas.

EXECUTABLE REFORM

appointment calendars | registry/staff capacity | accountable government appeals

| reliable service | age-based dockets | legal aid | cyber/privacy/local-language safeguards.

Digital-by-default must never become digital-only.

ASCII MASTER FLOW - PANEL 12/12: Comparison, PYQ controls and marks-scaled answer spine

SUPREME COURT | HIGH COURT | SUBORDINATE COURTS

Article 32 FR remedy | Article 226 FR + legal rights | statutory trial jurisdiction
national apex | territorial constitutional court | local facts and first adjudication
no Article 235 role | Articles 227/229/235 administration | controlled by High Court.

PYQ ROUTES

2024 GS-II Q2, 10 marks/150 words: Lok Adalat versus Arbitration Tribunal.

2025 GS-II Q13, 15 marks/250 words: collegium compared with United States.

2019/2021 Prelims routes: HC review and retired-judge distinctions.

10 MARKS

thesis -> 3 article distinctions -> one case -> limit -> verdict.

15 MARKS

architecture -> mechanism -> case/current evidence -> criticism -> targeted reform.

20 MARKS

multi-dimensional matrix -> causal chain -> counterargument -> executable safeguards.

FINAL LINE

Independent State justice needs broad remedies, restrained supervision,
High Court-controlled careers, dated capacity evidence and inclusive digital administration.

LEGAL/SOURCE LIMIT: India has 25 High Courts. The 1 July 2026 DoJ snapshot is 1,122
sanctioned, 781 working and 341 vacant. Rejanish K.V. (2025 INSC 1208) prospectively
replaced the categorical Dheeraj Mor exclusion; AIJS remains uncreated.